Collective Bargaining Agreement: Salaries and Wages: Ferro-Alloy Industry

IT is hereby notified that the Minister of Public Service, Labour, and Social Welfare has, in terms of section 80(1) of the Labour Act [*Chapter 28:01*], published the Collective Bargaining Agreement as set out in the Schedule which further amends the agreement published in Statutory Instrument 76 of 2017, and was registered in terms of section 79 of Labour Act [*Chapter 28:01*].

SCHEDULE

NATIONAL EMPLOYMENT COUNCIL FOR THE FERRO-ALLOY INDUSTRY IN ZIMBABWE

COLLECTIVE BARGAINING AGREEMENT: FERRO-ALLOY INDUSTRY IN ZIMBABWE

Made and entered into in accordance with the provisions of the Labour Act [*Chapter 28:01*] (hereinafter referred to as "the Act") as amended, between the Ferro-Alloy Industry Employers' Association (herein referred to as "the employers" or "employers organisation") of the one part, and the National Union of Metal and Allied Industries in Zimbabwe (hereinafter referred to as "the employees" or "the trade union"), of the other part, being parties to the National Employment Council for the Ferro-Alloy Industry in Zimbabwe.

The Collective Bargaining Agreement for the Ferro-Alloy Industry in Zimbabwe, published in Statutory Instrument 76 of 2017, is amended by parties as follows—

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Scope and application of agreement

1. (1) In terms of the provisions of section 82 of the Labour Act [*Chapter 28:01*], the terms of this agreement are binding upon and shall be observed by—

(a) the employers and employees engaged in the Ferro-Alloy Industry who are members of the employers' organisation and the trade union respectively, in Zimbabwe;

(b) all other employers and employees in the industry engaged in any occupation listed in the Ferro Alloy Industry, in Zimbabwe.

(2) This agreement is concerned solely with the conditions and categories of employment and the preservation of good labour relations in the Ferro-Alloy Industry.

(3) No employer or employee shall waive any provision of this agreement. Each provision shall create a right or obligation, as the case may be, independently of the existence of other provisions. In the event of any provision of this agreement being inoperative or *ultra vires*, the powers of the parties, or of the Labour Act [*Chapter 28:01*], or regulations made thereunder, either before or after publication of this agreement under the provisions of that Act, this shall in no way affect the remainder of the agreement, which shall in that event, constitute the agreement.

Period of operation and amendment of agreement

2. (1) This agreement shall come into operation on the date of its registration in terms of section 79 of the Labour Act [*Chapter 28:01*] and shall remain in force until amended by parties by mutual agreement:

(2) In the interests of promoting stability in the industry, the employers' organisation and the trade union have agreed that they shall not seek to amend this agreement during the first twelve months of operation unless there are fundamental changes in the operating environment or if there is legislative change or if there is a ministerial directive; provided that wage rates may be reviewed periodically to take into account such wage legislation as may be promulgated by the government or agreed by the National Employment Council or change in the macroeconomic environment.

(3) Nothing shall preclude the parties to amend this collective bargaining agreement anytime before the expiry of the twelve months provided that the changes sought to be introduced are by agreement or in terms of subsection (2) above.

(4) Where this agreement provides terms, conditions and benefits which differ from those provided under previous agreements and regulations displaced by this agreement, the new provisions shall apply from the date of registration of the agreement and not retrospectively.

Interpretation

3. In these regulations—

"Act" means the Labour Act [*Chapter 28:01*];

"agreement" means a collective bargaining agreement or any such agreement entered between the parties to the Employment Council which can be enforced at law;

"agreement of Council" means this agreement and any future agreement between the parties to this agreement which relates to employment in the industry;

"casual employee" means an employee who is engaged on a contract with a particular employer for a period not exceeding a total of six weeks in any three consecutive months;

"continuous service" means the total period of unbroken service of an employee with an employer in terms of section 23 of this collective bargaining agreement;

"control-room operator" means an employee based mainly in the control-room, and who operates and assists a production supervisor responsible for the safe and efficient control of one or more furnaces or plants;

"collective bargaining agreement" means an agreement negotiated in accordance with the Act which regulates the terms and conditions of employment of employees;

"Council" means the National Employment Council for the Ferro-Alloy Industry of Zimbabwe;

"day off" means, in the case of an employee employed for six days per week, Sunday or that day of the week in place of Sunday on which an employee is not normally required to work, or, in the case of an employee employed for five days per week, Saturday and Sunday or those days in the week on which an employee is not normally required to work, or, in the case of shift-workers on a fixed-roster system, those days in the roster on which such employees are not normally required to work;

"day-shift" means a shift that falls within the 6 a.m. to 6 p.m. working hours period;

"emergency work" means, work which must be performed immediately in a situation where life, property or equipment is in danger or in which a serious stoppage in production, the receiving of raw materials or final products, caused by unforeseen events, has occurred or is about to occur;

"employee" means any person who performs work or services for another person for remuneration or reward on such terms and conditions as agreed upon by the parties or as provided for in the Act, and includes a person performing work or services for another person—

(a) in circumstances where, even if the person performing the work or services supplies his or her own tools or works under flexible conditions of service, the hirer provides the substantial investment in or assumes the substantial risk of the undertaking; or

(b) in any other circumstances that more closely resemble the relationship between an employee and employer than that between an independent contractor and hirer of services;

"employer" means any person whatsoever who employs or provides work for another person and remunerates or expressly or tacitly undertakes to remunerate him or her, and includes—

(a) the manager, agent or representative of such person who is in charge or control of the work upon which such other person is employed; and

(b) the judicial manager of such person appointed in terms of the Companies and Other Business Entities Act [*Chapter 24:31*];

(c) the liquidator or trustee of the insolvent estate of such person, if authorised to carry on the business of such person by—

(i) the creditors; or

(ii) in the absence of any instructions given by the creditors, the Master of the High Court;

(d) the executor of the deceased estate of such person, if authorised to carry on the business of such person by the Master of the High Court;

(e) the curator of such person who is a patient as defined in the Mental Health Act [*Chapter 15:12*] (No. 15 of 1996), if authorised to carry on the business of such person in terms of section 88 of that Act;

"engineering assistant" means an employee who is employed to assist an artisan, and who works under the supervision of the artisan, may include mechanical or electrical maintenance involving the use of hand or power tools;

"exemptions" means a determination made by the Council or a committee so delegated by the Council to make such a decision which allows an employer or an employee to be absolved from complying fully or partially with any collective bargaining agreement made in the undertaking;

"ferro-alloy industry" means, without in any way limiting the ordinary meaning of the expression, the industry in which employers and employees are associated together in the production of ferro-chrome, ferro manganese and ferro-silicon chrome, low carbon ferrochrome from ore and associated materials, and includes all operations incidental thereto, but includes such production where the mining and beneficiation and additionally, or alternatively, the processing of such ore are carried out by the same employer and his or her employees; provided where within an establishment or workplace or a company or plant or unit if there are other employees who ordinarily must belong to another undertaking such employees shall be regarded as part of the ferro-alloy undertaking and the undertaking must grade and determine their working conditions;

"first-aider", means an employee engaged in first-aid duties, and who holds the certificate issued by the Medical, Dental and Allied Professions Council, Red Cross Society, St Johns Ambulance Services and any other authorised bodies;

"fixed term contract" means where an employee is engaged for a period of fixed duration or for the performance of a specific task and the contract of employment is terminated on the expiry of such period or on the completion of such task;

"grade" means classification of occupations as listed in the First Schedule;

"handyman" means an employee who carries out repairs or renovations of a minor nature to his employer's property, but who is not required to embark upon or carry out any single task in an occupation prescribed or a trade designated or deemed to have been designated in terms of the Manpower Development Act [*Chapter 28:02*];

"industrial holiday" means any day prescribed as a paid holiday in terms of Public Holiday and Prohibition of Business Act [*Chapter 10:21*];

"laboratory assistant" means an employee who has satisfactorily completed a course of secondary education with passes at "O" level English, Mathematics and one Science subject and who has undergone a period of training of not less than eighteen months under the direction of a laboratory technician/laboratory analyst who carries out the chemical analysis of alloys, ores and other inorganic compounds, without direct supervision, in accordance with standard procedures laid down or specific instructions issued by a person authorised to do so;

"medical assistant" means an employee engaged on as a healthcare professional who performs both clinical and administrative tasks under the supervision of a physician or other healthcare provider;

"medical practitioner" means any person who is legally permitted to practice as a Medical Practitioner in Zimbabwe;

"night-shift" means a shift that falls within the 6pm to 6am working hours period;

"overtime" means approved excess hours worked by an employee outside the total working hours permitted per day provided the authorisation for such excess hours is in writing between the employer and the employee;

"person to holder" occurs when an employee is made to occupy a job at a lower level whilst having a higher grade. The employee maintains his grade despite the disparity in the grade on the position he is holding. A new incumbent will occupy the position in terms of the actual grade and conditions;

"remuneration" the total compensation received by an employee including base salary, bonuses, commission payments, overtime pay and any other monetary benefits that the employee receives;

"senior clerk" means an employee engaged on clerical duties, who is in charge of other clerks who may be placed under him, and who is capable of controlling the work of such other clerks;

"section" means any section or paragraph of this agreement unless reference is made to another Act or regulations;

"shift" means a scheduled period of time during which employees perform their duties in a way that ensures continuous operations;

"shift-worker" means an employee who works on rotating schedules (morning, afternoon and night) and is covered by this agreement or works in the undertaking as a non-managerial employee;

"skilled worker" means the holder of a certificate of skilled worker qualification in terms of section 44 of the Manpower Planning and Development Act [*Chapter 28:02*] or any other law which designate an employee as a skilled worker;

"skilled worker's assistant" means an employee who assists a skilled worker as directed but who may not perform skilled worker's work;

"salary" a fixed regular payment, typically paid on a monthly basis;

"task work" means the setting by an employer to an employee of a stated task to be completed as a condition of earning a wage;

"ticket system" means a system whereby an employee is engaged at a wage calculated by reference to the completion of a ticket of an agreed number of days worked or a record based on the number of days worked;

"piecework" means any system by which earnings are calculated wholly on the quantity or output of work done, irrespective of the time spent on such work;

"wage" a fixed regular payment earned for work or services, typically paid on a daily or weekly basis.

PART II

Administration, Council Dues and Trade Union Fees

Administration of agreement

4. The Council shall be the body responsible for the administration of this agreement, and it may issue expressions of opinion not inconsistent with the provisions hereof for the guidance of employers and employees, and may delegate any of its duties or powers of administration to any committee appointed by the Council, subject to the provisions of its constitution relating to the appointment of committees.

Exemptions from collective bargaining agreements

5. Exemptions from any of the provisions of a collective bargaining agreement may be applied for by a registered employer or employers organisation or employee or trade union in the manner provided for in the NEC Constitution, and any application for exemption may be refused, partially granted or be granted in full or granted with conditions or may be cancelled or amended at any time.

Applications for and grant of exemptions

6. (1) The employee or trade union or employer or employer organisation may submit an application, in writing, to the exemptions committee in the form prescribed by Council for exemption from

all or any of the provisions of this agreement (See forms, annexure A and B), and shall furnish the exemptions committee with such further information as it may require for the purpose of determining the application.

(2) For avoidance of doubt an exemption application shall contain the following—

(a) audited accounts;

(b) management accounts (including income and expenditure of that company);

(c) in the absence of (i) and (ii) a report of the financial standing by a certified Public Accountant or auditor;

(d) wage bill for managerial and non-managerial employees including benefits;

(e) employees affected and their grades and or any other information which the employer believe would assist in the consideration of the application for exemption:

Provided this information referred above shall be confidential information which shall not be distributed outside the exemptions committee.

(3) The exemption committee shall within fourteen days of receipt of the exemption application, determine such application unless by agreement parties agree for extension of time or there are compelling reasons to extend time.

(4) The exemptions committee shall have powers to make the following decisions—

(a) refuse; or

(b) partially grant; or

(c) grant in full; or

(d) grant with conditions; or

(e) cancel; or

(f) amend at any time the application for exemption.

(4) A copy of such a certificate or the notification of any rejection and the reason therefore, shall be sent to the employees or trade union and employer or employers organisation.

(5) Any exemption that would have been granted may be revoked or amended as the case may be, and such revocation or amendment shall have effect from such date as the committee may fix and shall be notified to the parties concerned; provided the parties before that decision is made are given a right to be heard.

(6) The party who has received a notification of the decision, may within fourteen days, lodge an appeal, in writing to the Council who shall determine the appeal in writing within fourteen days of its receipt.

(7) The Chairperson of the exemptions committee or the Chairperson of the Council in exemption matters shall have a casting vote where there is a deadlock.

(8) The Council may make any decision which an exemption committee has powers to make and its decision shall be final.

(9) Any exemption granted under the repealed collective bargaining agreement shall be treated as if granted under the current collective bargaining agreement.

Council's dues

7. Council's dues shall consist of contributions to the general fund made up as follows—

(a) 2% deducted from an employee's basic salary as set by the Employment Council for each grade;

(b) 2% contribution by the employer matching the employee contribution as set in this section.

(2) Every employer and employee shall pay the Council dues whether they are affiliated to the undertaking or not provided the employer's main business is under the scope of coverage of the undertaking.

(3) Deductions shall apply to employees who would have worked ten days or more during that working month.

(4) The Council dues shall be paid on the same day the employees receive their salaries or wages and it shall be an unfair labour practice for an employer not to pay Council dues as required

under this provision; provided that where the employer delays paying the salary, the Council dues shall not be remitted not later than the 10th of every month.

(5) The Council shall forthwith apply for a garnish order or institute any form of legal proceedings against an employer who fails to pay Council dues as prescribed under this collective bargaining agreement.

(6) The Council shall forthwith apply for a garnish order or institute any form of legal proceedings against an employer who under declares the number of employees employed at the company as prescribed under this collective bargaining agreement.

(7) The Council shall have powers to set or review from time to time the employment Council dues and such decision shall be binding on all employers and employees in the undertaking.

(8) The employer shall add the amount specified in subsection (7)(a) to equal amounts required to be paid by employees.

PART III

Conditions of Employment

Grading and wages

8. (1) Every employer shall—

(a) place each employee in a grade appropriate to his occupation; and

(b) pay a wage to such employee of at least the amount prescribed in the First Schedule for the occupation of the employee:

Provided that any employer who wants to pay less shall apply for exemption.

(2) An employee who at the date of commencement of these regulations, is in receipt of a higher wage for his or her particular occupation than the wage prescribed in terms of this section shall not by reason of these regulations, suffer any reduction in his or her wage.

(3) An employee who is required to perform work in a lower grade than that in which he or she is normally employed shall be paid the wage applicable to the grade of work which he or she normally performs.

(4) An employee who is required to perform work in a higher grade than that in which he or she is normally employed, shall be paid the wage applicable to such higher grade for all hours spent working in the higher grade.

(5) Where an operation performed by an employee is not specified in the First Schedule—

(a) the employer shall provisionally place the employee in a grade; and

(b) the employer or employee shall notify the General Secretary to the Council; and

(c) the General Secretary in consultation with the Job Evaluation Committee, shall determine a classification of the operation, which shall be subject to ratification by the Council at its next meeting.

(6) If the interim classification by the employer or the final classification by the Council places the employee in a grade—

(a) higher than the employee's current grade, he shall be paid not less than the minimum wage prescribed for such higher grade, with effect from the date of approval by Council;

(b) lower than the employee's current grade, it shall be unlawful to reduce his or her wage but shall remain person-to-holder, with effect from the date upon which such classification is determined.

(7) No employer shall reduce the wage of an employee for anytime not worked if the employee was able and willing to work and was present at his or her place of work but the employer was unable or unwilling to furnish him or her with work.

Hours of work; employees other than shift-workers

9. (1) The provisions of this section shall not apply to shift-workers unless provided otherwise in this agreement.

(2) The ordinary hours of work for employees other than guards, shall not exceed forty-eight hours per week:

Provided that the ordinary hours of work shall not exceed nine hours per day.

(3) The ordinary hours of work for guards shall not exceed forty eight hours per week:

Provided that the ordinary hours of work shall not exceed twelve hours in any period of twenty-four hours.

(4) No employer shall require or allow an employee to work overtime, except in an emergency, to maintain essential services, or where the exigencies of the situation require that work be performed with greater rapidity than would be possible by working the normal hours prescribed or permitted by these regulations.

(5) An employee who refuses, without reasonable cause, to work approved overtime referred to in subsection (4) above may be disciplined.

(6) Except in the case of emergency work, no employer shall require or permit any employee, other than a guard, to work more than fifty six hours, ordinary time and overtime included, in any one week.

(7) Every employee shall receive at least one day off duty in each week.

(8) An employee of a services department may be required to work on his day off, but no employee shall be required to work on his off days in successive weeks, except in a case of emergency work. Once the emergency has been dealt with, the days must be compensated for.

(9) No employer shall require or permit any employee, other than a guard, to work for a continuous period of more than six hours without a break of at least thirty minutes;

Provided that such continuous period shall be deemed not to be broken by the break prescribed in subsection (10).

(10) An employer shall permit all employees to have a 15-minute break between the second and fourth hour after starting work.

(11) An employer shall allow an employee who has been required to work continuous overtime following a normal working shift, when such overtime is worked beyond 11 p.m., a rest period of at least eight hours before recommencing work on the next succeeding normal shift.

Hours of work: shift-workers

10. (1) The provisions of subsections (4) to (6) of section 9 shall apply to shift-workers.

(2) The ordinary hours of work for shift-workers shall not exceed forty-two hours per week or nine hours in any period of twenty-four hours:

Provided that, by mutual agreement between the employer and the employee concerned, shift-work may be worked on a four-week cycle, in which period the average weekly working time shall not exceed forty-two hours, and each shift shall not be less than seven hours or more than nine hours in any period of twenty-four hours.

(3) No employee shall be required to work two shifts in one day, except for the purpose of changing shifts, or in a case of emergency work, and no employee shall commence work on the new shift until at least eight hours have elapsed after the completion of his or her previous shift.

(4) Nothing contained in this section shall confer any right to payment for overtime on any shift-worker who is required to work two shifts in one day for the purpose of changing shifts.

(5) No shift-worker shall be kept on night-shift for a continuous period of more than four weeks without his or her consent or where even if consent is obtained the employee's health and safety is endangered or other people's safety maybe endangered.

(6) A shift-worker who is changed from night-shift to day-shift shall be placed on day-shift for a period at least equal to the period during which he was on night-shift, unless he otherwise agrees.

(7) Except in the case of emergency, no employer shall permit a shift-worker to work for a continuous period of more than six hours without a break of at least fifteen minutes.

(8) The employer shall provide each shift-worker with a free beverage during the prescribed fifteen-minute break.

Contracts for hourly work

11. No employer shall engage an employee on terms that the employee will be paid only for the hours that such employee actually works—

(a) on terms that prohibit such employee from being employed by another employer or on his or her own account, during the hours when he or she is not working for the first mentioned employer;

(b) if the effect of such contract is that in any consecutive period of two months the employee earns less that the minimum remuneration or wage fixed in a collective bargaining agreement as the minimum rate of remuneration or minimum wage for the undertaking or industry, and grade and type of occupation governed by that collective bargaining agreement, in which event the employee concerned shall be entitled to be paid the difference between what he or she has earned in that period of two months and one month's remuneration or wage;

(c) if such contracts are prohibited by the collective bargaining agreement governing the undertaking, industry and grade and type of occupation.

Conversion of rates

12. For the purpose of converting monthly wage to hourly rate—

(a) the formula for obtaining an hourly rate for an employee in a particular grade shall be monthly basic salary divided by 182.5 hours;

(b) there shall be a schedule for total maximum hours per grade in the schedule of the Collective Bargaining Agreement;

(c) computations similar to those set out in subsection (a) shall be used when converting hourly, monthly or annual rates.

Payment of overtime

13. (1) The provisions of this section shall apply to all employees.

(2) An employer shall pay for overtime on a working day at not less than one and a half times the current hourly wage of the employee.

(3) An employer shall pay an employee who is called on their day off to provide service or for an employee who works on an industrial holiday at a double rate.

Deductions

14. No deduction or set-off of any description shall be made or allowed from any remuneration, other than a bonus, due to an employee, except—

(a) such deductions as are prescribed in the agreement as contributions to the General Fund of the Council; or

(b) where the employee is absent without leave from work on days other than paid holidays or vacation leave, a '*pro rata*' amount of the wage only for the period of such absence; or

(c) by a written stop-order for contributions to insurance policies, medical-aid schemes or pension funds; or

(d) any amount which the employer is compelled by law or legal process to pay on behalf of the employee; or

(e) for goods purchased or services rendered to the employee, or money lent to the employee by his employer, on stop-order signed by the employer for any amount up to but not exceeding twenty-five (25) *per centum* of the gross wage due to such employee:

Provided that, where such goods have been purchased or the services rendered by a supplier at the direction or dictation of the employer, such deduction shall not be made; or

(f) upon termination of service, the balance of any money owed to the employer in terms of paragraph (e).

Payment of remuneration

15. (a) Every employer shall pay remuneration due to each employee, weekly or monthly as the case may be, on or by the due date:

Provided that payments of overtime, bonuses and allowances shall be made to each employee, weekly or monthly, as the case may be, within fourteen working days of the due date.

(2) When the services of an employee are terminated, payment of all remuneration due shall be made within thirty (30) days.

(3) All remuneration shall be paid in cash, cheque or bank deposit, and shall be accompanied by a wage-slip showing—

(a) the name of the employer and grade of the employee; and

(b) the wage-rate; and

(c) the total number of hours worked; and

(d) the amount of overtime; and

(e) allowances and or bonus, paid to the employee; and

(f) any deductions, which may include deductions for absence without leave, or other deductions permitted in terms of section 13; and

(g) the net amount received by the employee; and

(h) the period for which payment is made; and

(i) the date of engagement of the employee.

Piece-work, task-work and work on a ticket system

16. No employer shall give out, and no employee shall perform, work on—

(a) a piece-work basis; or

(b) a task-work basis; or

(c) a ticket system.

Incentive production schemes

17. Notwithstanding the provisions of section 15, an employer may operate an incentive production scheme whereby the remuneration of the employee in excess of the minimum wage and payment for overtime, if any may be determined by quantity, quality and additionally, or alternatively, economy of production work performed.

Special provisions: casual employees

18. (1) A casual employee whose period of employment exceeds six weeks in any three consecutive months shall be deemed to be a full-time employee.

(2) A casual employee shall be paid at not less than double the hourly equivalent of the wage prescribed for his occupation in the First Schedule.

Special provisions: learners and trainees

19. (1) An employer may engage a learner or trainee in an occupation, but in all such instances, the contract of learnership shall state the period of learnership or training.

(2) On satisfactory completion of the period of learnership or training the trainee or leaner maybe employed in the appropriate occupation and grade if a vacancy is available.

Vacation leave

20. (1) In this section—

"qualifying service", in relation to vacation leave accrued by an employee, means any period of employment following the completion of the employee's first year of employment with an employer.

(2) Unless more favourable conditions have been provided for in any employment contract or in any enactment, paid vacation leave shall accrue in terms of this section to an employee at the rate of one twelfth of his or her qualifying service in each year of employment, subject to a maximum accrual of ninety days' paid vacation leave:

Provided that, if an employee is granted only a portion of the total vacation leave which may have accrued to him or her, he or she may be granted the remaining portion at a later date, together with any further vacation leave which may have accrued to him or her at that date, without forfeiting any such accrued leave.

(3) All Saturdays, Sundays and public holidays falling within a period of vacation leave shall be counted as part of vacation leave.

(4) An employee who becomes ill or is injured during a period of vacation leave may cancel his or her vacation leave and apply for sick leave.

(5) Where an employee has no vacation leave accrued, he or she may be granted vacation leave without pay.

Industrial holiday

21. (1) All holidays declared in terms of the Public Holidays and Prohibition of Business Act [*Chapter 10:21*], as public holidays which fall on days of the week which would normally be working days shall be industrial holidays.

(2) Subject to the provisions of subsection (3), every employee shall be granted leave of absence on industrial holidays, and shall be paid his or her current daily wage for every industrial holiday.

(3) An employer may require an employee to work on any industrial holiday, in which case he or she shall be paid in terms of section 12 in respect of time worked, and in addition to the payment prescribed in subsection (2).

Benefits during sickness

22. (1) If an employee, whilst at work, claims to be unfit for work owing to sickness or accident, his or her employer shall grant to the employee such facilities as may be necessary to enable such employee to be examined by a medical practitioner.

(2) Upon being medically examined, an employee shall obtain a medical certificate stating—

(a) whether or not he or she is fit for work; and

(b) if he or she is not fit for work, the period for which he or she is likely to be unfit for work.

and shall produce such certificate on his or her return to work if requested to do so by his or her employer.

(3) If an employee has obtained from a medical practitioner a certificate stating that he or she is unfit for work, he or she shall be entitled to full pay for the first ninety days of illness and to half month's salary for the immediate subsequent period of ninety days.

(4) Subject to the provisions of subsection (7) of section 22, an employer shall be entitled to terminate the contract of employment upon fulfilment of the provisions of subsection (3).

(5) An employee shall be entitled to the benefits of this section unless his sickness or injury was wilfully self-induced or intentionally self-inflicted.

(6) When no medical practitioner is available, certificate issued by a suitable qualified person or a State Registered Nurse shall be accepted in place of a medical practitioner.

(7) The provisions of subsections (4) to (6) shall not apply to any employee whose sickness or accident is covered by the provisions of the Workmen's Compensation Act or the State Service (Disability Benefits) Act [*Chapter 16:05*] or any other enactment relating to compensation. For avoidance of doubt no employee shall benefit twice for a sickness or accident.

Contract and notice

23. (1) Every person who is employed by or working for any other person and receiving or entitled to receive any remuneration in respect of such employment or work shall be deemed to be under a contract of employment with that other person, whether such contract is reduced to writing or not.

(2) An employer shall, upon engagement of an employee, inform the employee in writing of the following details—

(a) name and address of employer;

(b) his or her grade; and

(c) his or her wage and when it will be paid; and

(d) provision for accommodation; and

(e) the period of notice required to terminate contract of employment;

(f) the hours of work; and

(g) the details of any bonus or incentive production scheme in operation; and

(h) provision for benefits during sickness, or pregnancy;

(i) provision of vacation leave, and vacation pay;

(j) any probationary period;

(k) the period of time, if limited for which the employee is engaged;

(l) terms of any employment code;

(m) particulars of any other benefits provided under the contract of employment.

(3) A contract of employment that does not specify its duration or date of termination, other than a contract for casual work or seasonal work or for the performance of some specific service, shall be deemed to be a contract without limit of time:

Provided that a casual worker shall be deemed to have become an employee on a contract of employment without limit of time on the day that his or her period of engagement with a particular employer exceeds a total of six weeks in any three consecutive months.

(4) Except where a longer period of notice has been provided for under a contract of employment or in any relevant enactment, and subject to subsections (5), (6) and (7), notice of termination of the contract of employment to be given by either party shall be—

(a) three months in the case of a contract without limit of time or a contract for a period of two years or more;

(b) two months in the case of a contract for a period of one year or more but less than two years;

(c) one month in the case of a contract for a period of six months or more but less than one year;

(d) two weeks in the case of a contract for a period of three months or more but less than six months;

(e) one day in the case of a contract for a period of less than three months or in the case of casual work or seasonal work.

(5) Notice periods required to be given by the employee

(6) A contract of employment may provide in writing for a single, non-renewable probationary period of not more than—

(a) one day in the case of casual work or seasonal work; or

(b) three months in any other case;

during which notice of termination of the contract to be given by either party may be one week in the case of casual work or seasonal work or two weeks in any other case.

(7) Whenever an employee has been provided with accommodation directly or indirectly by his or her employer, the employee shall not be required to vacate the accommodation before the expiry of a period of one month after the period of notice specified in terms of section (d).

(8) The parties to any contract of employment may, by mutual agreement, waive the right to notice:

Provided that where the termination is at the initiative of the employer, the employee shall have a right to payment for a period corresponding to the appropriate period of notice required.

(9) Neither an employer nor employee shall give notice of termination of contract whilst the employee is on vacation leave, and no such period of notice shall run, or be deemed to have run, concurrently with any period of vacation or sick leave.

(10) Any contract of employment which is for a stipulated period shall specify the date of commencement and the date of termination thereof, and no further notice to terminate the contract shall be required from either party.

Continuous service

24. (1) Continuous service shall be deemed to be broken only by the death, resignation, retirement or discharge of the employee concerned:

Provided that an employee who is discharged and re-engaged by the same employer within two months of such discharge shall be deemed not to have broken his or her continuous service.

(2) A period of absence without the permission of the employer, or a period of absence between discharge and re-engagement of less than two months, shall not be taken into consideration in calculating any benefits in terms of sections 8, 19, 21 or 27.

(3) If, upon the change of ownership of an establishment, an employee enters the service of the new owner, or continues his or her employment in the establishment, his or her service with the previous owner shall be reckoned as service with the new owner, and shall be deemed not to have been broken by such change of employer:

Provided that, if such employee is paid by the previous owner, the gratuity in terms of section 27 in respect of his or her service with that owner, the gratuity payable by the new owner on the death, resignation, retirement or discharge of such employee may be reduced by the amount of the gratuity paid by the previous owner.

Service increment

25. The minimum wages prescribed in the First Schedule for employees, shall be increased by the appropriate percentage specified hereunder in respect of employees whose total service with the same employer amounts to five years or more, as follows—

(a) five years or more, four *per centum*;

(b) ten years or more, six *per centum*;

(c) fifteen years or more, eight *per centum*;

(d) twenty years or more, ten *per centum*;

(e) twenty-five years or more, twelve *per centum*.

Record of service

26. (1) An employee whose services are terminated, for any cause whatsoever, may request a record of service from his or her employer.

(2) The record of service supplied by the employer to the employee shall specify the period of service served by the employee and the occupation in which he or she was employed.

Protective clothing

27. (1) An employer shall supply, free of charge, suitable protective clothing to every employee who, in the course of his or her duties, is habitually exposed to inclement weather, or such protective clothing as is reasonably required for the occupation or operation in which the employee is engaged.

(2) Protective clothing issued in terms of subsection (a) shall—

(a) remain the property of the employer if he or she is responsible for mending, washing and otherwise maintaining such clothing; or

(b) become the property of the employee should he leave the company after three months of continuous service, if he or she is responsible for mending, washing and otherwise maintaining such clothing:

Provided that emblems and insignia provided by the employer to be worn on such clothing shall remain the property of the employer.

3. Every Employer is obliged to comply with all the regulations in the Factories and Works Act [*Chapter 14:08*] and the NEC PPE Matrix Schedule which shall be amended from time to time.

Gratuities on termination of employment

28. (1) An employee who has completed ten or more years of continuous service shall, on termination of such employment, irrespective of the circumstances of such termination be paid a gratuity of not less than the amount derived by multiplying the number of completed years of continuous service by the appropriate percentage

as set out in the Third Schedule, of his or her current monthly wage on termination.

(2) If an employee who has completed ten years of continuous service dies before receiving a gratuity in terms of subsection (1) there shall be paid to his or her estate the sum which the employee would have received if this contract of employment had terminated on the day of his or her death.

(3) Notwithstanding the provisions of subsections (1) and (2), no gratuity shall be payable to, or to the estate of, an employee under this section if his or her employer has made provision for him or her by means of a pension or gratuity scheme registered as a fund in terms of the Pension and Provident Funds Act, [*Chapter 24:09*], which provides benefits which are not less favourable than those prescribed in this section.

Bathing facilities

29. (1) An employer shall provide sufficient bathing facilities for all employees to be able to bath themselves at the conclusion of a shift.

(2) The facilities referred to in subsection (1) shall be provided in accordance with regulations made in terms of the Factories and Works Act [*Chapter 14:08*].

Workers' Committees

30. (1) For the purposes of this section—

"establishment" means any factory, works, production or assembly plant, together with the associated stores offices, detached units and off-site work places, in which the activities of the industry are being carried out.

(2) Every establishment which does not have a worker's committee shall, if its employees so desire, afford the employees reasonable facilities and opportunities for meeting and communicating with each other for the purpose of forming a steering committee with the objective of creating a workers' committee. For this purpose the employer concerned shall supply the steering committee with the names, occupations, grades or class of skill of his or her employees.

(3) A workers' committee shall be formed and shall conduct its affairs and proceedings in accordance with the provisions of the Labour Act but shall do nothing which is inconsistent with the provisions of this agreement.

(4) A workers' committee shall for the purpose of its meetings be provided by the employer concerned with an adequate room and furniture at his establishment.

(5) Meetings shall be held outside of working hours unless the employer gives his or her consent for a meeting within working hours. Members of the workers' committee who require to investigate matters falling within their jurisdiction, shall on application be allowed reasonable time off to do so.

Works Councils

31. (1) Where in an establishment a Workers' Committee exists, the employer shall set up a works council which shall be the forum in which the workers' committee shall make its representations to and conduct negotiations with the employer.

(2) The functions and duties of the Works Council shall be—

(a) to provide and maintain an exchange of information and ideas, and to establish co-operation and understanding between the establishment and the employees, with a view to reducing problem areas and to preventing misunderstandings;

(b) to assist employees in gaining a greater understanding of the establishment's activities in order to foster an appreciation of the establishment's aims and objectives;

(c) to gain the co-operation of employees in the understanding and implementation of the employer's policies in respect of the use of manpower, equipment and other resources so that the employer's objectives in terms of standards and production are attained;

(d) to promote employment security, general work satisfaction and job enrichment, safety and health;

(e) to foster and maintain good relations between employees at all levels, and to understand and seek solutions to their common problems;

(f) to promote the general and common interest and welfare of both the establishment and its employees and to this end to assist management in attaining its objectives;

(g) Generally to secure the mutual co-operation and trust of employees, employer and the trade unions in the interests of industrial peace, improved working conditions, greater efficiency and increased productivity.

(3) The areas of discussion of a works council, in so far as each establishment and this agreement are concerned, shall be confined to the following—

(a) improvements of working conditions;

(b) procedures for dealing with grievances;

(c) promotion of occupational health and safety measures, and their enforcement;

(d) all matters pertaining to employee's welfare within the establishment, where such matters are not covered by this agreement;

(e) methods of increasing efficiency, productivity and improving quality;

(f) the means of avoiding wastage of manpower, raw materials and equipment;

(g) general discipline and conduct:

Provided that any specific cases of misconduct shall be dealt with in accordance with normal practice in the establishment, and shall therefore not be subject to discussion by the works council;

(i) other matters having the objective of improving relations between the establishment and workers:

Provided that such matters—

(ii) do not infringe upon or impede in any way the rights of the employer to manage his or her business as he deems fit and are not covered by any current industrial agreements.

(4) The works council shall be constituted in accordance with the following—

(a) it shall consist of not less than five worker representatives, to be known as "elected members", who shall be nominated by the workers' committee from amongst their number, and a Chairman and not less than four other employer representatives, to be known as "appointed members", who shall be nominated by the employer:

(b) Provided that there shall be an equality of voting power at each meeting of the works council which shall be obtained by increasing or decreasing the number of elected members or appointed members, as the case may be;

(c) the period of office of elected members shall be twenty four months and of appointed members for the period of their nomination, and members shall be eligible for further periods of office.

(d) meetings and the business of the works council shall be conducted in accordance with the following—

(iii) it shall meet as required during normal working hours for the proper discharge of its functions;

(iv) items for the agenda shall be submitted in writing to the Chairman at least five working days before the meeting and the Chairman shall prepare the agenda and perform such other duties as, by usage and custom, pertain to that office:

Provided that a meeting may be held at any time to deal with matters of urgency;

(v) minutes of meetings shall be distributed to all works council members, and shall be displayed on establishment notice boards not later than seven working days after each works council meeting;

(vi) the quorum for a meeting shall consist of two elected members and two appointed members. If within fifteen minutes of the time fixed for any meeting a quorum is not present, the meeting shall

stand adjourned for five working days at the same time and place and if, at such adjourned meeting a quorum is not present council shall be informed of the reasons for the meeting not being held:

Provided that if the day to which a meeting is adjourned is an industrial holiday the meeting shall stand adjourned to the next working day following the industrial holiday;

(vii) the attendance at meetings shall be restricted to elected members and appointed members:

Provided that the works council shall only be made to co-opt additional members in an advisory and non-voting capacity on specific terms;

(viii) decisions or recommendations shall only be made by a majority of the elected members and of the appointed members voting in favour thereof.

Leave for trade union officials

32. (1) An official or office bearer of a registered Trade Union or federation shall be entitled to take such reasonable paid or unpaid leave during working hours for the purpose of enabling the Official or Office bearer to perform the functions of his or her office.

(2) The maximum number of paid leave days for Trade Union Officials shall be 12 days in a year.

(3)An employee as an official or office bearer of a registered Trade Union or Federation shall be on paid leave if the business being attended to relates to Employment Council meetings such meetings shall not be capped in terms of the number of days. For avoidance of doubt no employer shall deduct from the employees leave days for any day spent by the employee attending Employment Council business and any other legislative meetings. Provided that an employee shall produce a duly signed release letter by the General Secretary of the Employment Council or any relevant authority.

Labour market information

33. Every employer shall furnish the Employment Council on a monthly basis the following information—

(a) total number of workforce within its establishments;

(b) ratios of female to male employees;

(c) employees living with disabilities;

(d) employees on maternity leave;

(e) employees dismissed due to misconduct;

(f) employees retrenched;

(g) employees who died in work-related accident related accidents;

(h) employees injured at work;

(i) number of strikes;

(j) age proportional ratios (16-25; 26-35; 31-35; 36-45; 46-55; 56-65; 65+);

(k) retired employees.

Standby and callout allowances

34. (1) In certain circumstances, it becomes necessary for non-shift employees to be on standby outside normal working hours, in order to attend to emergency situation. When an employee is on standby, he or she is paid a standby allowance for the inconvenience of being restricted to his or her home.

(2) Duration of standby Standby shall be for a period of one week, commencing 1600 hours Friday and ending 1600 hours the following Friday.

(3) Payment of standby and callout—

(i) employees on standby shall be paid an allowance equivalent to a full shift for any one period they are on standby;

(ii) when an employee is called out, he or she shall be paid overtime for the hours worked;

(iii) if an employee is called out after 10pm and exceed six hours working, he or she shall be granted a normal rest before commencing normal shift.

Housing allowance

35. That the housing allowance in the Ferro Alloy Industry of Zimbabwe shall be 7% of an employee's basic wage with effect from 1st March, 2024.

Copy of regulations and notice

36. (1) Every employer shall exhibit a copy of these regulations and all amendments thereto in a place easily accessible to every employee.

(2) No person shall, without lawful cause, alter, deface or remove, or cause to be altered, defaced or removed, the copy of the regulations, save on the instruction of the employer in effecting his responsibilities under subsection (1).

FIRST SCHEDULE (*Sections 1, 3 and 8*)

GRADING AND WAGES

Classification of occupations in grades	*Minimum (USD) wages/salary*
Grade 1	$332,03
Cleaners (excluding those specified in grade 2)	
Labourers (excluding those specified in grades 2 and 3)	
Grade 2	$340,33
Labourers—	
Alloys-recovery	
Ingot-breaking	
Melting-furnace	
Butt welding	
Alloy-sorting	
Concentrator	
Steel-bar-handling (No. 1)	
Chemical dispenser	

Attendants-
Crusher
Lift
Hoist
Screen
Scales
Slimes-dam
Jig-discharge

Classification of occupations in grades

Others—
Builder's Assistant
Bagging assistant
Office-cleaner/messenger
Wooden-pallet-maker/repair
Assistant cook
Caretaker/gardener
Kitchen help

Grade 3 $347,73

Labourers—

Casting-bay (including slingers)
Furnace
Journeyman
Laboratory
Checker/Spotter
Attendants-
Conveyers
Dryer
Breaker
Charger
Ball-mill
Primary crusher
Stores issues
Tippler
Trippler
Tunnel
Charge-bin
Spiral

Diesel
Flagger
Dam
Return Ore
Bin
Belt

Others—

Senior gardener
Tapper
Jack-hammer-repairer
Ladle-fettler
Assistant storekeeper (workshop)
Drum-maker

Grade 4 $358,59

Mechanic's assistant
Tyre-repairer
Diesel plant fitter assistant
Greaser
Electrode-assembler
Assistant-storekeeper
Drum-sealer/filler
Belt-repairer
Tailor
Workshop tool-store attendant
Gas Fire Attendant
Packing Material Attendant
Mixer Attendant
Furnace Charger
Fire Attendant

Grade 5 $381,54

Learner engineering assistant
Dumper-driver
Machine-handler (quarry)
Fan Control Room Operator
Charge Car Operator

Grade 6	$404,47
Clerks-	
Vehicle-scale (tipper)	
Wages	
Auto Electrician assistant	
Boiler maker assistant	
Clerk	
Diesel and plant issue clerk	
Personnel	
Protective clothing	
Packing and dispatch	
Manning	
Transport	
Raw materials	
General relief	
Stores issue	
Workshop	
Control Room	
Junior leading hands-	
Ramsey	
Felsites quarry	
Office	
Others—	
Engineering assistant (fitting)	
Fork-lift driver	
Pointsman	
Guard (security)	
Light attendant	
Sampler	
Signwriter	
Panel-attendant (briquetting)	
Pipe-fitter's assistant	
Weigh-bridge clerk/attendant	
Stores goods received	
Stores dispatch assistant	
Ingot-breaker-driver	
Instrument mechanic's assistant	
Alloy-stock-controller	

Cobbler

Grade 7	$420,18
Attendants-	
Slag-granulation	
Jig compressors	
Others—	
Panel-attendant (raw materials)	
Cleaning supervisor/Team leader	
Burner	
General relief stores	
Shopkeeper	
Cook	
Hydrocone Crusher Operator	
Grade 8	$441,90
Clerks—	
Production personnel	
Time office	
Engineering planning	
Stores (audit)	
Stores accounts section	
Stores analysis	
Drivers—	
Locomotive	
Tractor	
Lorry	
Proclaim	
Bulldozer/grader	
Tipper	
Car/bus	
Heavy vehicle	
Diesel bowzer truck driver	
Leading hands—	
Clerk of works	
Production consumables	
Mechanical	

Electrical
"E" metal
Slag disposal
Lime-bagging
Site-maintenance
Stores
electrode-assembly
pool-gang
alloy-sorting
breaker and crusher
paste-gang

Others—
corporal (security)
stores typist/clerk
Leading Hand

Grade 9 $469,68

ADT Operator
BOB Cat operator
Dozer operator
Excavator operator
FEL Operator
Grader Operator(Final Cutter)
overhead-crane driver (under 40 tonnes)
front-end loader driver
self-loader driver
charger-car driver
printing clerk
locomotive-driver (slag-disposal)
locomotive-driver (40 tonnes)

Grade 10 $524,01

Leading hands—
metal–recovery
packing and dispatch
raw materials
casting-bay
cobbing

Ramsey
sampling
Metal from slag (M.F.S)
projects
production safety
junior laboratory assistant
Others—
senior clerk
sergeant (security)
mobile-crane driver
chauffer
stores-expediter
trainee control-room operator
chef
senior sampler
taphole operator

Grade 11 $562,65

Senior leading hands—

electrical workshop
Metal from slag (M.F.S)
refractories
drumming
transport

Others—
trainee welding-shop assistant
senior clerk
laboratory assistant
production clerk
stores (accounts clerk)
handyman (woodworker)
handyman (bricklayer)
sergeant-major (security)
overhead-crane driver (40 tonnes and over)
clerical assistant (costs)
metallurgical assistant
telephone/reception

copy typist
plant maintenance assistant
Semi-skilled DPF Assistant
Carpenter class (II)
SPV Team Leader

Grade 12 $658,03
Senior leading hands-
felsite
tippler
metal-handling
heavy gang

Others—
Bagging supervisor
assistant storeman
control-room operator
senior laboratory assistant
manning assistant
briquetting assistant
overhead-crane driver (65 tonnes and over)
data-processing assistant
cashier
welding-shop assistant
administrative assistant (trainee)
accounts clerk
shorthand typist
administrative assistant
accounts-machine operator
accounts cashier
personnel assistant (welfare)
personnel assistant (administration)
supervisor (administrative services)

Grade 13 $813,80
Trainee/relief supervisor—
production
metal handling
Metal from slag (M.F.S)
pack and dispatch

Others—
skilled welder-operator
skilled heavy-gang operator
timekeeper
book-keeper
secretary
senior salaries clerk
raw materials clerk
senior statistics/production clerk

Grade 14	$856,05

Supervisors—

Food and Accommodation supervisor
production
metal-handling
Metal from slag (M.F.S)
material-handling
briquetting-plant
production consumables
safety
property
data-processing
pack and dispatch
technical assistant (engineering)
assistant personnel manager
private secretary
senior confidential secretary
industrial nursing sister
storeman
assistant personnel officer
wages cashier

Grade 15	$898,31

Journeyman (class 2)
Fitter
Welder
Mechanic
Lab Analyst

Grade 16	$1 023,89
Skilled Worker (class 1)	
Assistant Accountant	
Commercial Liaison Officer	
Security Officer	
Draughtsman	
Assistant Stores-Controller	
Trades Instructor	
Laboratory Technician	
Auto Electrician	
Boiler Maker (Class 1 Journeyman)	
Diesel Mechanic	
Diesel Plant Fitter	
HL Electrician	
Fitter (Class 1 Journeyman)	
Fitter and Turner (Class 1 Journeyman).	

SECOND SCHEDULE (*Section 19*)

PERIODS OF LEARNERSHIP OR TRAINING

Occupation/learnership	*Period of training*
Learner driver (unlicensed vehicles and equipment)	3 months
Learner laboratory assistant	18 months
Trainee production operatives	12 months
Trainee materials-handling supervisors (raw materials and packing-bay)	12 months
Trainee metal-jig operatives	12 months

THIRD SCHEDULE (*Section 28*)

GRATUITIES

Length of service Years	*Percentage of monthly wage on termination of employment*
10	15
11	16
12	17
13	18

Length of service Years	*Percentage of monthly wage on termination of employment*
14	19
15	20
16	21
17	22
18	23
19	24
20	25
21	26
22	27
23	28
24	29
25	30
26	31
27	32
28	33
29	34
30	35
31	36
32	37
33	38
34	39
35	40

FOURTH SCHEDULE:

CODE OF CONDUCT

It is hereby notified that the Minister of Public Service, Labour and Social Welfare has, in terms of section 101 of the Labour Act [*Chapter 28:01*], approved publication of the Collective Bargaining Agreement set out in the Schedule.

SCHEDULE

NATIONAL EMPLOYMENT COUNCIL FOR THE FERRO ALLOY INDUSTRY COLLECTIVE BARGAINING AGREEMENT: FERRO ALLOY INDUSTRY (EMPLOYMENT CODE OF CONDUCT AND GRIEVANCE PROCEDURE)

This agreement, to be known as (''the Ferro Alloy Code of Conduct and Grievance Procedure'') has been made and entered into in accordance with the provisions of the Labour Act [*Chapter 28:01*], between the Ferro Alloy Industry

Employers' Association (hereinafter referred to as the "employers") and National Union of Metal and Allied Industries in Zimbabwe. (hereinafter referred to as the "employees".

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PART A: DISCIPLINARY PROCEDURE

SECTION 1

1.0 INTRODUCTION

1.1 Preamble

It is hereby notified that the Code of Conduct set out in this Schedule has been registered in terms of section 101 of the Labour Act [*Chapter 28:01*]. This Code obliges both the employers and employees to respect the fundamental rights and duties of workers and employers as provided for in the applicable statutes. Where this Code of Conduct is inconsistent with the provisions of the Labour Act [*Chapter 28:01*], the latter shall take precedence. The overall objective of this Code of Conduct is to preserve natural justice and discipline thereby promoting orderly conduct. Officials administering this Code must have regard to the spirit and intention behind it.

1.2 Name and Structure of the Code of Conduct

The Code of Conduct shall be known as the National Employment Council for the Ferro Alloy Industry in Zimbabwe Code of Conduct.

This Code is divided into: Part A - Disciplinary Procedure
Part B - Grievance Procedure

1.3 Principles of administering the Code

1.3.1 This Employment Code of Conduct is based on the following principles:

(i) In general, disciplinary action should, in the first instance, be educational and then corrective. Punitive action should only be taken when the earlier steps have proved ineffectual.

(ii) This Code provides advance warning of the consequences of misconduct, grievance raising procedure and appeal procedure. All offences should be communicated to the alleged offender by the complainant.

(iii) Prompt Disciplinary Action:—Once sufficient evidence is established, immediate disciplinary action should be taken against the alleged offender, so that he/she can associate the penalty with indiscipline. Delays in administering discipline may be misinterpreted by the alleged offenders, as the penalty will not be associated with the offence committed.

(iv) Investigate the case (Burden of Proof):- All cases alleged to have been committed should be thoroughly investigated by the Investigating Committee.

(v) Discipline in Good Faith:—Disciplinary action should always be taken in accordance with laid down procedures and with full regard for fairness and impartiality.

(vi) Consistence in Treatment:—Similar offences must be treated in similar manner in accordance with laid down procedures of the Code of Conduct. Managers should always be guided by substantive and procedural fairness principles.

- ✓ Provided that no deduction or set-off of any description shall be made from any remuneration except such deduction complies with section 12A(6) of the Labour Act [*Chapter 28:01*].

However, each case must be considered on its own merits, irrespective of how similar they may be. The following circumstantial factors should be considered when administering Code of Conduct:

- ✓ Personal work history and past disciplinary record.

- ✓ Severity of the offence.
- ✓ Lapse of time since last misconduct.
- ✓ Whether the circumstances were avoidable or not.
- ✓ General organization practice for similar cases.

(vii) Progressive Penalties:—Depending on the severity of the case, the Code of Conduct allows for gradual increase of penalties in administration of the Code. Where leniency has been considered due to prevailing mitigating factors, the Penalty shall only go 1 step backwards.

(viii) Right of Representation:—All Alleged Offenders should always be given the right to be represented by Workers' Representative(s), fellow employee(s) or legal practitioners of their choice.

(ix) Right to Nominate witnesses:—Both the alleged offender and complainant would be allowed to nominate their witnesses.

(x) Right to Cross-examine:—Alleged offenders have the right to cross-examine the complainant and witnesses. It is therefore important for the complainant, alleged offender and their witnesses to be present at a disciplinary hearing. The alleged offenders and their witnesses who give evidence will also be cross examined.

(xi) Right of Appeal:—Since the Code of Conduct is dependent on human judgement, errors may occur. An appeals system is therefore, an integral part of the Code. All alleged offenders should be advised of their right and procedure to appeal to higher level authority if not satisfied with the determination.

1.4 Definitions and/or interpretation of terms and or/phrases

Any expressions used herein which are defined in the Labour Act [*Chapter 28:01*], shall, unless otherwise defined or specified herein, have the same meaning as in the Act; and any words importing the masculine gender shall include the feminine gender, and any word in the singular sense shall include the plural sense, unless inconsistent with the context:

1.4.1 "Act" means the Labour Act [*Chapter 28:0*1].

1.4.2 "Appeals Officer" means anyone presiding over appeal cases.

1.4.3 "Breach" means misconduct as a result of an action or omission that violates the rules of conduct to be observed at the place of work, as defined in this Employment Code of Conduct.

1.4.4 "Code" means the National Employment Council for the Ferro Alloy Industry in Zimbabwe Code of Conduct.

1.4.6 "Company Appeals Committee" means a Committee that is mandated to adjudicate appeal hearing proceedings within the company.

1.4.6 "Complainant" means the immediate superior of the offending employee or aggrieved employee, who have lodged the complaint.

1.4.7 "Disciplinary and Grievance Committee" means a Committee that is mandated to adjudicate disciplinary proceedings or hear or determine a grievance.

1.4.8 "Drug" means any intoxicating drugs, except those prescribed by a Medical Practitioner in terms of the Health Professions Act [*Chapter 27:19*].

1.4.9 "Employee" means any person who works for any company within the Ferro Alloy Industry in Zimbabwe in any capacity including contract employees, trainees, apprentices, casual workers and seasonal workers excluding those who are not NEC graded employees as defined under Section 2.1(a-c) of this Code of Conduct and those employees whose conditions are subject to a registered in-house Code of Conduct for their particular undertaking as stated in 2.1.

1.4.10 "**Gender-based violence and harassment"** means violence and harassment directed at persons because of their sex or gender, or affecting persons of a particular sex or gender disproportionately, and includes sexual harassment and or any action done by a person directly or indirectly in a manner that amounts to violence and harassment towards another person at the workplace including public and private spaces where they are a work of place.

1.4.11 "Grievance" means any dissatisfaction or feeling of injustice out of the work itself or work situation.

1.4.12 "Investigating Committee" means a Committee authorized to investigate an alleged act of misconduct.

1.4.13 "Line Supervisor" means an employee who has direct responsibility for other employees both in terms of behavior and work performance as well as for implementing and enforcing the rules, procedures and penalties of this Code.

1.4.14 "Medical Report" means a report on one's illness(es) as issued by a Registered Medical practitioner who is registered under the Health Professions Act [*Chapter 27:19*].

1.4.15 "Next Line Supervisor" means Senior to line supervisor.

1.4.16 "Presiding Officer" means any designated person(s) in authority appointed to preside over disciplinary/grievance hearing.

1.4.17 "Technical Expert" means a specialist in a given field.

1.4.18 "Violence and Harassment" means a range of unacceptable behaviors and practices, threats thereof, whether a single occurrence or repeated, that aim at, result in, or are likely to result in physical, psychological, sexual or economic harm, and includes gender-based violence and harassment.

1.4.19 "Workers' Representative" means any Ferro Alloy Industry Workers' Committee member employed at a respective undertaking, relevant Trade Union member of a company within the Ferro Alloy Industry.

1.4.20 "Working Days" means any other day except public holidays and weekends. Where an employee is authorized to be absent from work because of illness or any authorized leave of absence, such days shall be excluded when reckoning time in terms of the Code of Conduct procedures.

1.4.21 "Works Council" means a Council composed of an equal number of representatives of an employer and representatives drawn from members of a Workers Committee at the workplace.

1.4.23 "Legal Practitioner" – means a lawyer registered in terms of the Legal Practitioners Act [*Chapter 27:07*].

SECTION 2

2.0 Application

2.1 This Code of Conduct shall apply to all employees within the Ferro Alloy industry whose conditions of employment are provided for in the Ferro Alloy Industry Collective Bargaining Agreement (CBA) and or related Agreements and statutes for the National Employment Council for Ferro Alloy Industry in Zimbabwe.

2.2 Companies Codes of Conduct that are approved by the NEC as provided for under section 101 of the Labour Act [*Chapter 28:01*] shall take precedence over the NEC Code.

2.3 The Code shall therefore cover all NEC graded employees in the following categories:—

(a) Employees in contracts without limit of time (permanent employees) including those on probationary period.

(b) Employees in fixed term contracts.

(c) Employees who are engaged in learnership contracts within the Ferro Alloy Industry including and not limited to Apprentices and Students on Work Related Learning.

SECTION 3

3.1 Duties and Rights of the Employer

The Employer shall have the following rights and duties in terms of this Code:

(a) to manage and conduct business subject to the statutes, this Code of Conduct, Ferro Alloy Industry Collective Bargaining Agreements and in compliance with the prevailing labour regulations.

(b) to ensure that the duties of workers are adequately defined for them and understood.

(c) To ensure compliance with all labour laws, Ferro Alloy Industry Collective Bargaining Agreements and other applicable instruments.

(d) To act in good faith in its relationship and deliberations with workers and their Trade Unions.

(e) To ensure that workers are familiar with the provisions of this Code of Conduct through worker educational programs.

(f) To ensure that workers organize themselves freely for the purposes of forming Workers' Committees and Trade Unions without interference and hindrances.

(g) To refrain from unfair labour practices as defined in the Labour Act [*Chapter 28:01*].

(h) To enforce discipline upon alleged offenders in terms of this Code of Conduct.

(i) To maintain jointly with the employees or employees' representatives effective arrangements for negotiation, consultation and communication and, for settling grievances and labour disputes at shop floor level.

(j) To ensure the creation of a conducive atmosphere for productivity and promote descent work.

(k) To ensure effective human resource planning and development including policies and procedures.

(l) To resolve disputes and grievances in accordance with the procedures as provided under Ferro Alloy Industry collective agreements; and

(m) To promote schemes of worker participation in ownership and management of companies wherever possible.

3.2 Duties and Rights of Employees

Workers shall have the following rights and duties in terms of this Code:

(a) To organize themselves freely for the purposes of forming Workers' Committees and Trade Unions as well as the right to engage in the lawful activities of such Trade Unions, Workers' Committees for advancing and protecting their interests, education and collective bargaining.

(b) To obtain reasonable access to the employees at their place of work during working hours as provided for under section 7(2) of the Labour Act [*Chapter 28:01*].

(c) Trade Union officials and Union members shall be granted reasonable paid leave of absence to attend to official Trade Union business, education and training, over and above the paid Special Leave provided for in the Labour Act [*Chapter 28:01*].

(d) To ensure that employees and their representatives comply with all labour laws, Ferro Alloy Industry Collective Bargaining Agreements (CBA) and other applicable instruments.

(e) To identify and call witnesses, including any technical expert where necessary, when required for ease of implementation of the Disciplinary and Grievance Procedures.

(f) To be represented by a Fellow Employee, Workers Committee Member, Registered Trade Union Official within the Ferro Alloy Industry-or Legal Practitioner.

(g) To act in good faith in its relationship with employers or employers' organization.

(h) To encourage the promotion of productivity.

SECTION 4

CATEGORISATION OF ACTS OF MISCONDUCT

Breaches have been classified into four major categories. Allocation of particular breaches to one of the four categories listed is designed primarily to facilitate the administration of discipline and its control through statistical returns. The description of such breaches is designed to provide uniformity of procedure.

4.1 Absenteeism and other Breaches Related to Absenteeism

Absenteeism in this context means absence from work without permission for the whole shift or day or poor time keeping, reporting late for work, leaving worksite without permission or extended and unauthorized breaks during working hours.

4.2 Breaches related to Sub-standard performance and irregularities

4.2.1 Unsatisfactory Work Performance

(a) Negligence: performance of a task or duty without the exercise of due care and attention.

(b) Neglect of duty: failure to exercise proper care and regard to the manner of discharging duty to the extent that tasks have to be repeated or equipment or persons are at risk of damage or injury.

(c) Inefficiency: failure to carry out work to the required standard.

(d) Loitering: passing time idly or failing without reasonable cause to complete tasks set.

4.2.2 Willful Loss, Damage or Misuse of Company Property.

(a) Willful loss: any act where an employee willfully or deliberately loses or causes to be lost Company property.

(b) Willful damage: any act where an employee willfully or deliberately damages or allows or causes to be damaged Company property.

(c) Willful misuse: any act whereby an employee willfully or deliberately misuses Company property or accommodation.

4.3 Breaches relating to Indiscipline or Disorderly Behavior

4.3.1 Disobedience and Related Breaches

(a) Refusing to obey an instruction: deliberate refusal to carry out a lawful instruction given by a person in authority.

(b) Failing to obey an instruction: failure to obey a lawful instruction given by a person in authority.

(c) Non-compliance with established procedures/standing instructions: failure to follow established procedures or failure to handle complaints or grievances in the prescribed manner.

(d) Refusing to work overtime: failure to work overtime when required to do so in terms of any existing agreement provided that the need for such overtime work shall not contravene the

provisions of Section 9 of the NEC Collective Bargaining Agreement as shall be amended from time to time.

4.3.2 Abuse and Related Breaches

(a) Abusive language: the uttering of any words or the publication of any writing expressing or showing hatred, ridicule or contempt, for any person or group of persons.

(b) Insubordination: insolence towards a superior shown by demeanor, action or words.

4.3.3 Disorderly Behavior and Related Breaches

(a) Disorderly behavior: indulging in rough or unruly behavior or horseplay.

(b) Assault or attempted assault: occasioning or attempting to occasion bodily harm to any Company employee or any person involved in the Company business on work related issues or where such behavior is likely to interfere with production or affecting Industrial Relations within the Company.

(c) Fighting: physical combat with any Company employee or any person involved in Company business whilst on Company property or plant.

(d) Intimidation and/or Incitement:—any act by an employee, whether by herself/himself or in concert with other persons (whether or not such other persons are employees) inciting others to engage in an unlawful job action.

4.3.4 Alcohol, Drugs and or Substances Breaches

(a) Incapable of working properly or reporting for work whilst apparently under the influence of alcohol, drugs and/or substances.

(b) Being in possession of alcohol, drugs and/or substances other than medically prescribed drugs whilst on duty.

(c) In possession of liquor or unauthorized intoxicating drugs at workplace:–Taking alcohol, drugs and or substances: taking, injecting or inhaling alcohol, drugs and or substances other than medically prescribed drugs whilst on duty.

Investigation into such cases may involve:—

✓ Administering of Breathalyzer by a Qualified and Certified Health Personnel

- ✓ Visual observations of the Alleged Offender and or physical tests on balance whilst the Alleged Offender is standing on one leg and or speech tests. Such tests to be conducted by the Investigations Committee.

4.3.5 Negligent Loss, Damage or Misuse of Company Property Breaches

(a) Negligent loss of Company property: any act whereby an employee through carelessness or negligence loses Company property or is unable to account for it satisfactorily.

(b) Negligent damage to Company property: any act whereby an employee through carelessness or negligence causes or allows Company property whether or not in his/her charge, to become damaged.

(c) Misuse of Company property: using Company property or accommodation for a purpose or purposes other than that for which it was intended.

4.3.6 Unlawful Collective Job Action

(a) This refers to any action by one or more employees to withdraw their labour, or "go slow" or otherwise interference with the normal operations of the Company in furtherance of a dispute or with the object of compelling management to take or refrain from taking any specific action where the matter in dispute has not been processed through the relevant procedures prescribed by law, any action by any employee to persuade, encourage or intimidate any employee to take such unlawful job action, any action designed to interfere with the normal operations of the Company in the furtherance of any dispute or otherwise.

4.3.6.1 Sabotage:—Any act by an employee to interfere with the normal operations of the Company by damaging any plant, machinery or equipment or by interrupting any supplies of power, fuel, materials or services necessary to the operations.

4.4 Breaches Related to Safety, Health and Environment

(a) Violation of Safety Rules:—Negligence or responsibility for a wrongful act or omission that causes accidents, injury or death at work.

(b) Serious Violation of Safety Rules: - Failure to remove conditions, which might cause accident (s), disabling injury lost time and/or fatality to self-and/or others and/or serious damage to property.

SECTION 5

5.1 Suspension from Workplace

(a) In certain circumstances, the complainant will ensure that the alleged offender is suspended from the work place pending investigations of the alleged breach(es). Generally, an employee will be suspended from the workplace when his continued presence is deemed likely to lead to a disturbance or when it is necessary to avoid injury to persons or loss or damage to Company property or alleged offender is likely to interfere with witnesses and/or investigations.

(b) The Head of Department (HOD) to whom the complainant is subordinate, in consultation with Human Resources Official shall effect the suspension in the presence of a witness. The HOD will decide whether the alleged offender may return to work or should remain suspended from the workplace pending the outcome of the investigation and the hearing.

(c) Suspension forms shall be dully signed as per procedure of this Code of Conduct.

(d) The suspended employee shall be paid for the shift/s during which he/she is on suspension.

(e) The alleged misconduct for the suspended employee shall be investigated and a hearing conducted.

5.2 Breaches at work for which suspension is Mandatory

An employee must be suspended from the workplace immediately if he/she has committed or is involved in any of the following breaches:—

(a) Consuming intoxicating liquor or drugs at work or being unfit to carry out his duties due to the influence of intoxicating drink or drugs.

(b) Any act or omission, which intentionally endangers the health or safety of others, or is likely to cause damage to Company property.

(c) Fighting or riotous behavior, threatening violence or acting violently.

(d) Abusive or provocative language and insubordination (when it is likely to cause a disturbance).

(e) Theft or Fraud or any other business irregularity (where the employee's presence is likely to hinder or obstruct investigations).

(f) Gender Base Violence and Harassment.

SECTION 6

6.0 DISCIPLINARY PROCEDURE IN DETAIL

6.1 Composition of the Disciplinary Committee

- ✓ Presiding Officer
- ✓ Two (2) Workers Committee Representatives
- ✓ Two (2) Managerial Representatives
- ✓ Human Resources Official who shall be the secretary to the committee and is not part of the disciplinary committee

6.2 STAGE A

6.2.1 Action by Complainant when a Breach is Committed/Reported

(a) When an offence has allegedly been committed, the complainant shall lay a formal disciplinary complaint within two (2) working days from the date of discovery. Provided that Complaints outside this period may be lodged in situations where parties are operating away from their base. In such circumstances the complainant is expected to lodge the complaint within two working days of their return to their base.

(b) Formal complaints to be raised in the presence of the alleged offender and two (2) Worker Representative. Where the alleged offender has absconded or for some reasons cannot be available, the complaint shall be raised in absentia.

(c) The complainant shall cite the alleged breach(es) in terms of the Code of Conduct, Schedule 1 – Offences.

(d) The complainant then submits the complaint form to the Human Resources Department for disciplinary investigations within one (1) day of raising the charge. The Human Resources Official must ensure that the complaint form properly identifies the breach(es) and is otherwise correctly completed.

6.3 STAGE B

6.3.1 Disciplinary Investigations

6.3.1.1 Composition of the Investigating Committee

- ✓ Human Resources Official (Leading Investigations)
- ✓ Two (2) Workers' Representatives.

6.3.1.2 Investigation Procedure by the Investigating Committee

(a) Investigations to be concluded within 3 working days from the date of raising the complaint form. Where more time is required to investigate the case, the Human Resources Official shall cause an adjournment of the hearing to allow for completion of investigations. Reasons for adjournment shall be cited on the adjournment form and agreed upon provided that a single adjournment shall not exceed 2 working days before reconvening the hearing.

(b) The Investigating Committee therefore shall:

- ✓ Record or procure in writing, statements from the complainant, the offending employee and/or witnesses of both parties. In the event of any party to the proceedings being unwilling or unable to furnish a written statement, the Investigating Committee will note this fact in writing and thereafter prepare a Question and Answer Report.
- ✓ Ensure the complainant and the Alleged Offender name in writing any witnesses whom they think are necessary to ensure a fair hearing.
- ✓ Assemble all relevant disciplinary documents, and hand them to the Presiding Officer, and shall inform the Alleged Offender accordingly. The Presiding Officer will then set the date for a hearing meeting in consultation with the Human Resources Official.
- ✓ Authorize the Human Resources Official to investigate the domestic circumstances of the Alleged Offender where necessary; for example, when a domestic crisis is offered as reason for absence or in support of a plea of mitigation.

6.4 STAGE C

6.4.1 The Hearing Notice

(a) The Human Resources Official shall invite in writing, the complainant, and the alleged offender to attend the hearing proceeding three (3) working days before the hearing date.

(b) The hearing notice memorandum shall state the date, time, venue and that the alleged offender has the right to bring at most two Workers Representatives, Fellow employees, or a Legal Practitioner of his/her own choice.

(c) The hearing notice shall be validly and effectively served if:

(i) Personally, served to the employee, or

(ii) Delivered by hand to the employee's habitual residential or mailing address as notified in writing to the employee.

(iii) If the Alleged Offender makes it impossible to be served as above, sent through post to the employee's residential address as notified to the employee and such service shall be deemed to have been effected in normal course of the post.

6.5 STAGE D

6.5.1 The Disciplinary Hearing Procedure

The procedure to be adopted at the hearing will be as outlined below:

(a) The Presiding Officer shall explain to the Alleged Offender his/her rights to be represented and the disciplinary procedures to be followed.

(b) Having ascertained that the particulars on the complaint form are correct, the Presiding Officer should inform the Alleged Offender of the charge against him/her and ensure that it is fully understood. If he/she is represented, his/her representative should confirm that the charge is fully understood.

(c) The Presiding Officer shall invite the Alleged Offender to answer the allegations levelled against him or her.

(d) The Alleged Offender and the Complainant shall be allowed to cross-examine each other and their named Witnesses where necessary. However, the Presiding Officer may terminate any such questioning if he or she considers it to be unfair, unduly prolonged or unnecessary.

(e) The Disciplinary Hearing Committee may, where necessary, seek any clarifications from the Complainant, Alleged Offender and their named Witnesses.

(f) Having satisfied himself/herself that he/she has all the facts, the Presiding Officer will invite the representative of the Alleged Offender to make submissions.

(g) Disciplinary decision should only be given by the Hearing Committee and communicated through the Presiding Officer. Where the Committee does not agree, the Presiding Officer shall cause a vote to happen and more than 50% vote decision shall prevail provided that where there is a tie, the Hearing Officer shall cast a deciding vote.

(h) If the finding is that the Alleged Offender is to be acquitted, he/she will be so informed and the finding "case dismissed" entered on the complaint form. The employee's Disciplinary record will be cleared of all reference to the case.

(i) Where an employee is found guilty, the Presiding Officer will consider the following:

(i) The employee's record of service and live disciplinary record.

(ii) Any mitigating or aggravating circumstances

(j) The Presiding Officer will advise the employee found guilty that if he/she wishes to lodge an appeal, this must be done within five (5) working days from the date of concluding the hearing.

6.5.2 The disciplinary proceedings shall not exceed 14 working days from the date when the formal disciplinary complaint was served to the date of the determination.

6.6 STAGE E

6.6.1 Penalties

Penalties should be given depending on severity of the breaches as given in the schedule of offences.

6.6.1.1 Verbal Warnings

Any Supervisor may at any time at his/her discretion, reprimand or counsel an employee without completing a Complaint Form depending on the severity of the breach as given in the schedule of offences.

6.6.1.2 Recorded Warnings

When a verbal warning is considered inadequate because of the nature of the Breach or when previous verbal warning has not achieved the desired correction, the Supervisor will lay a formal complaint in order to have the case formally dealt with and in order to have

an entry made on the employee's Disciplinary Record. In increasing order of severity, there are three levels of recorded warnings:

(a) First Written Warning

(b) Second Written Warning

(c) Final Written Warning

NB: Only Officials at Head of Department and above may award Final Written Warnings.

6.7 Dismissal

Dismissal is the final sanction

6.8 Demotion

This is used only as mitigation to dismissal. As a general rule, the employee may only be demoted one grade lower than his/her current grade, unless special circumstances exist in which case Disciplinary Committee/Appeals Committee will separately record the reasons or justification for such a decision in its written determination.

6.9 Forfeiture of Wages/Benefits

Forfeiture of Wages/Benefits of an employee who takes part in any unlawful collective job action, in addition to being penalized in terms of this Code, will be dealt with in term of the provisions of the Labour Act [*Chapter 28.01*].

SECTION 7

7.1 Role of Human Resources Officials in disciplinary proceedings

7.1.1 Render advice on the procedural fairness of the hearing to ensure consistency of hearing proceedings.

7.1.2 Render advice on interpretation of the Code of Conduct and provisions of the Labour Law.

7.1.3 Record minutes of the hearing proceedings and cause such minutes to be signed by the Disciplinary and or Appeals Committee. Such minutes shall be accepted for all purposes as *prima facie* evidence of the proceedings and decisions taken at the meeting.

7.1.4 Process all documentation in respect of Code of Conduct cases and appeals. Human Resources Officials should always attend such hearings.

7.1.5 Record and retain records of all disciplinary proceedings for at least 5 years and ensure that:

(a) All facts are collected, marshalled and presented without bias.

7.1.6 Receive grievance cases in case of employees not feeling comfortable raising such through the channels provided in the Grievance procedure.

SECTION 8

8.0 COMPANY APPEALS

Every employee has the right to appeal against any decision which involves an entry on his/her disciplinary record and which may thus affect his future employment prospects.

8.1 Composition of the Company Appeals Committee

- ✓ Appeals Officer
- ✓ Two (2) Workers Committee Representatives
- ✓ Two (2) Management Representatives
- ✓ Human Resources Official (as a Secretary to the committee)

8.2 Appeals Procedure

Stage 1: An aggrieved employee shall lodge in writing an appeal with the Appeals Officer within five (5) working days from the date of receipt of a penalty determination. Appeals raised outside the stipulated time shall be null and void, except where reasonable excuse has been given for the delay. The appeal letter shall be submitted through the Human Resources Department. The appeal letter shall clearly spell the grounds of appeal and date of receipt of the determination appealed against.

Stage 2: The Human Resources Department shall compile all necessary documents for the appeal and submit to the Appeals Officer within 5 working days of receiving the appeal letter. The Appeals officer shall set an appeal hearing date in liaison with the Human Resources Official.

Stage 3: The Human Resources Official shall assemble an Appeals Committee to hear the appeal and invite the Complainant and Appellant to attend the proceedings in writing three (3) working days before the date of the appeal hearing.

Stage 4: Appeal proceedings shall be attended by the appellant who may be accompanied by at most two Workers Representatives, Fellow employees, or a Legal Practitioner of his/her own choice.

Stage 5: Appeal hearing decision shall be reached by the Appeals Committee whose decision shall be final and binding within the company level. Where there is a tie, the Appeals Officer shall have a casting vote.

8.3 Company appeal proceedings should be concluded within 15 working days from the date of lodging the appeal

SECTION 9

9.0 EXTERNAL APPEALS

An aggrieved employee may appeal to the NEC Ferro-Alloy Designated Agent within 30 days of the conclusion of the internal proceedings whereupon the Designated Agent shall attempt to conciliate the dispute in terms of section 93 or exercise any other power provided for that in the section, alternatively an aggrieved employee shall appeal to the Labour Court.

CODE OF CONDUCT-SCHEDULE OF OFFENCES AND PENALTIES
OFFENCES AND ACTION GUIDELINES
SCHEDULE (1) ON OFFENCES

Classification	Level of Action	Absenteeism and other breaches related to absenteeism	Breaches related to Substandard performance & irregularities	Indiscipline & Disorderly Conduct	Safety, Health & Environment	Level of persons to process
Minor	1st written warning (Lapses after 3 months) Loss of pay for the hours or days lost in case of Absence from work without permission of leaving worksite without permission	✓ Poor time keeping. ✓ Absence from work for 2 or less days without permission or reasonable cause. ✓ Leaves work site or place without permission.	✓ Poor supervision. ✓ Substandard work performance. ✓ Minor loss, misuse or damage of Company property through negligence. ✓ Negligence resulting in minor loss or prejudice ✓ Inefficiency resulting in minor loss or prejudice	✓ Horse play ✓ Minor failure to obey an instruction by a person in authority. ✓ Failure to follow a standing instruction resulting in minor loss, or prejudice	✓ Minor breaches of Company Rules (including Safety Rules)	Line Supervisor
Severe	2nd Written Warning (Lapses after 6 months) Loss of pay for the hours or days lost in case of Absence from work without permission of leaving worksite without permission	✓ Absence from work for more than 2 days and less than 5 days without permission or reasonable cause.	✓ Incompetence and/ or inefficiency ✓ Negligence resulting in significant loss or prejudice ✓ Unauthorised use of Company property, plant, transport and/or equipment.	✓ Giving Unauthorised Press Statement, either in print, verbally or on any social media platform/ ICT platforms regarding Company Business ✓ Noncompliance or Failure to follow standing instruction by a person in authority ✓ Gender based violence and harassment (verbal) for example; -Requesting sexual favors -Expressing a desire for sexual contact or conduct	✓ Violation of safety rules. ✓ Sleeping on duty (in non-critical areas))	Head of Section

Classification	Level of Action	Absenteeism and other breaches related to absenteeism	Breaches related to Substandard performance & irregularities	Indiscipline & Disorderly Conduct	Safety, Health & Environment	Level of persons to process
				-Using sexually explicit language -Telling sexual jokes -Commenting on a person's appearance -Speaking in a sexual tone -Using sexually suggestive nicknames or terms of endearment		
More Severe	Final Written Warning (Lapses after 12 months)		✓ Gambling on duty ✓ Use of Company Transport/ Equipment without appropriate Driver's license.	✓ Possession of a firearm on site without Company approval. ✓ Indiscipline and Disorderly Conduct ✓ Violence and Harassment ✓ Gender based violence and harassment (Nonverbal) for example: - Exposing oneself - Blowing kisses and winking -Showing sexually explicit videos - Stalking	✓ Sleeping on duty • (in critical areas)	Head of Department

Classification	Level of Action	Absenteeism and other breaches related to absenteeism	Breaches related to Substandard performance & irregularities	Indiscipline & Disorderly Conduct	Safety, Health & Environment	Level of persons to process
Gross	Dismissal	✓ Absence from work for a period of five (5) consecutive days or more reasonable cause	✓ Unauthorised use of Company property, plant, transport and/ or equipment ✓ Gross inefficiency in the performance of work ✓ Gross incompetence in the performance of work ✓ Habitual or Substantial neglect of duty ✓ Drivers of vehicles going off scheduled routes without authority or reasonable cause ✓ Drivers of vehicles giving lifts to unauthorised non-company passengers ✓ Malicious damage to Company or Client(s)/ Customer(s) property	✓ Riotous behavior on work site ✓ Drunk on duty, consumes liquor on site or under the influence of drugs during working hours ✓ Unlawful Collective Job Action ✓ Theft of Fraud ✓ Found in possession of liquor or unauthorized intoxicating drugs (non-prescribed by a registered medical practitioner)at the work place ✓ Any act or omission in consistent with the fulfillment of the express or implied conditions of his or her contract ✓ Giving unauthorised press statement which causes or has potential to cause substantial cost or loss to the company ✓ Willful disobedience to a lawful order. ✓ Lack of skill which the employee expressly or impliedly held him/ herself out to possess ✓ Gender based violence and harassment (physical) for example: -Expressing oneself -Touching another person's body, clothing or hair -Patting -Hugging or grabbing -Kissing -Pinching or biting	✓Serious violation of Safety rules which causes or has potential to cause serious accident(s), serious injury or death at work.	Head of Department

NB: *In case of repeated cases whilst the other warning is valid, the level of warning shall move 1 step upward*

PART B: GRIEVANCE PROCEDURE

SECTION 1

1.0 INTRODUCTION

1.1 Intention

It is in the interest of all parties to observe a grievance procedure by which all issues between employer and employee and between employees can be considered and resolved. The grievance handling procedure shall apply to both individual and collective grievances. It is important that grievances be resolved at the earliest stage and this must be done equitably, speedily and fairly. An unresolved grievance can give rise to a dispute, at which stage the solution is much more difficult. The following grievance procedure no way replaces or supersedes any provision of the Labour Act [*Chapter 28:01*] nor does it prejudice the rights of the individual under the Act or under the Ferro Alloy Industry collective bargaining agreement.

SECTION 2

2.0 THE ROLE OF THE SUPERVISOR

2.1 Make arrangements whereby no interruptions will take place.

2.2 Read out aloud the grounds of the grievance to all persons present at the grievance meeting.

2.3 Ask for further comment from aggrieved employee/s.

2.4 Ask for comment from the employee Organization representative if one is present.

2.5 Clarify any relevant point in the grievance.

2.6 Sum up the findings and make a decision.

2.7 Ensure that the grievance hearing will be attended by the aggrieved employee, together with a representative of their choice (where appropriate), a Human Resources Official and the Supervisor who is chairing the grievance meeting.

SECTION 3

3.0 ROLE OF HUMAN RESOURCES DEPARTMENT AND OTHER SERVICES

The Human Resources Department may at any stage in the procedure be consulted for information and advice by the employee or Supervisor. Employees may submit grievances without any prejudice whatsoever regarding their employment.

It is the responsibility of the person handling a grievance to record, on the Grievance Form, details of any additional reasons for his/her decision. In the event of the grievance proceeding further, this information will be available at the next and all subsequent stages.

SECTION 4

4.0 PROCEDURE

Stage 1

4.1 Line Supervisor

Stage 1 will deal with any matter which an employee, or group of employees, wishes or wish to raise as a grievance.

4.1.1 An employee who wishes to raise any issue in which he/she is directly concerned must first raise it with his/her immediate Supervisor. The Line Supervisor will do his/her best to resolve the issue within two (2) working days.

4.1.2 If the Line Supervisor does not settle the issue to the satisfaction of the employee, the latter may, if he/she wishes, seek the assistance of a Human Resources Official and an Employee Representative to raise the matter a second time with his/her immediate Supervisor. The time limit between the immediate Supervisor's first decision and the second meeting with the employee accompanied by the Human Resources Official will be two (2) working days.

4.1.3 If any issue affects two or more employees answerable to the same Line Supervisor not more than two of the employees concerned, accompanied where appropriate by the Human Resources Official or Employee Representative will raise the issue with the Supervisor concerned.

4.1.4 The Line Supervisor will do his/her best to resolve the issue.

(a) If the Line Supervisor does not settle the issue to the satisfaction of the employee, the latter may within three (3) working days complete a grievance form assisted by the Human Resources Official. The grievance form will be submitted to the next Line Supervisor, a copy retained by the Human Resources Official and a copy given to the employee.

(b) An employee may at this stage and any subsequent stage request, if he/she wishes that a representative from a Trade Union, Workers' Committee or a work Colleague attend a meeting and assist him/her which includes the right to ask

any relevant questions of any witness, at the next stages of the Grievance meeting.

Stage 2

4.2 Next Line Supervisors

NOTE: Depending on level of employee initiating the grievance, Stage 2 may represent 3 additional stages, i.e.

Stage 4.2.1 Next Line Supervisor
Stage 4.2.2 Next Line Supervisor other than those in Stage 4.2.1
Stage 2 will deal with:

(a) Issues that have not been resolved at stage 1.
(b) Issues affecting employees for whom the next Line Supervisor is the first common Supervisor.

4.2.1 The next Line Supervisor is responsible for arranging a meeting with the employee(s) and the Human Resources Official concerned.

4.2.2 If the next Line Supervisor does not settle the issue to the satisfaction of the employee, the employee may, within three (3) working days, resubmit the grievance form for consideration by the Section Head, by the Human Resources Official and Employee Representative.

Stage 3

4.3 Section Head

Stage 3 will deal with:

(a) Issues which have not been resolved at Stage 2.
(b) Issues affecting employees answerable to two or more Next Line Supervisors for whom the Section Head is the first common Supervisor.

4.3.1 The Section Head will arrange a meeting with the employee/s and Human Resources Official within three (3) working days of submission of the grievance form for his/her consideration.

4.3.2 If the Section Head does not settle the issue to the satisfaction of the employee/s, the employee/s may re-submit, within three (3) working days, the grievance form through the Human Resources Official for consideration by the Head of Department.

Stage 4

4.4 Head of Department

4.4.1 Stage 4 will deal with any issues that have not been resolved in Stage 3 or issues affecting employees reporting to more than one Sectional Head.

4.4.2 The Head of Department will arrange a meeting with the employee/s and Human Resources Official within three (3) working days of submission of the grievance form for his or her consideration.

4.4.3 The Head of Department's decision will be binding on all parties

Stage 5

4.5 Grievance Appeals Committee

If the Head of Department does not settle the grievance to the satisfaction of the employee/s, the employee may appeal to the Grievance Appeals Committee chaired by a person senior to the Head of Department.

4.5.1 Composition of the Committee

- ✓ General Manager/Director or his designee
- ✓ Human Resources Official
- ✓ Two (2) Workers Committee Representatives

4.5.2 Grievance Appeal Procedure

Stage 1: Submit the grievance appeal letter to the Grievance Appeals Committee within three (3) working days of the decision reached by the Head of Department. The employee must put his/her reasons for appealing in writing, stating clearly his/her grounds for appeal.

Stage 2: Setting of the grievance appeals hearing date by the General Manager or his or her Designee in liaison with the Human Resources Official. The Human Resources Officer shall then invite in writing two (2) working days before the grievance hearing.

Stage 3: Grievance appeal hearing. The Grievance Appeals Committee may call upon such persons involved in the grievances as may be considered relevant. If not resolved to the satisfaction of the aggrieved, the aggrieved may take out the issue to the NEC Ferro Alloy Industry Designated Agent.

NEC FERRO ALLOY INDUSTRY IN ZIMBABWE

ANNEXURE 'FORM No. 1'

CODE OF CONDUCT: WRITTEN WARNING FORM

Name of Company .....

Address of Company.....

Telephone .....

Employee Name.....

Job Title.....

Department.....

Subject: First/Second/Final Written Warning *(tick where applicable)*
This letter serves as a formal warning regarding *(describe issue)*.....
.....
.....
.....
which does not meet the expected standards of .....
.....
(Company name). Failure to improve may result in further disciplinary action.

I, acknowledge receipt of this written warning and understand its contents.

SIGNATURE ..... Date

WITNESS: ..... (Worker Representative)

SIGNED: ..... (Supervisor)

SIGNED: ..... (Human Resources Official)

NEC FERRO ALLOY INDUSTRY IN ZIMBABWE

ANNEXURE 'FORM No. 2'

CODE OF CONDUCT: SUSPENSION FROM WORK

Name of Company .....

To: ..... Alleged Offender & W/Number .....

Job Title:.....

From:.....(Designated Official's Position)

Department/Section: ..... Date:.....

RE: SUSPENSION FROM WORK PENDING FURTHER INVESTIGATION AND HEARING

Please be advised that you are suspended from work with immediate effect pending further investigations, into your alleged .....
.....
(Offence as per Code). It is alleged that on.....
(Date), you .....
.....(Details of misconduct).

The allegation(s) being levelled against you constitute an offence in terms of the NEC for Ferro Alloys in Zimbabwe Code of Conduct, Schedule 1 on offences, Offence (s) Number (s)……. On completion of the investigation, a hearing will be arranged as shall be advised in writing by the Human Resources Official. Also note that your suspension is **with** full pay and benefits. Furthermore, you are expected to cooperate with the investigating team and for you to be accessible to them as and when they need you during normal working hours.

Acknowledge receipt of this communication by signing below:—

Signed By (Names and Signatures)

H.O.D Suspending..... Date:.....

Alleged Offender: ..... Date:.....

Witness:..... Date:.....

cc: Human Resources Department

NEC FERRO ALLOY INDUSTRY IN ZIMBABWE

ANNEXURE 'FORM No. 3'

CODE OF CONDUCT: DISCIPLINARY COMPLAINT FORM

Name of Company .....

Company Address ....

..... Telephone No.: .....

1. Name of Complainant..... Position Held.....

2. Name of Alleged Offender ..... Works No: .....

   Position ..... Grade.....

   Department ..... Section .....

3. Nature of Complaint (Quote the alleged offence as per Schedule '1' on Offences, then explain what happened) .....
   .....
   .....
   .....

4. Names of Complainant's witnesses & Works Numbers;

   4.1 .....

   4.2 .....

5. Signed by:

   5.1 Complainant .....Date:.....

   5.2 Alleged offender.....Date:.....

   5.3 Workers Representative:.....Date:.....

   5.4 Workers Representative:.....Date:.....

NEC FERRO ALLOY INDUSTRY IN ZIMBABWE

ANNEXURE 'FORM No. 4'

CODE OF CONDUCT: HEARING DETERMINATION FORM

Name of Company .....
Company Address ....
..... Telephone No.: .....

1. Name of Complainant..... Position Held.....

Nature of Complaint (*in brief)* .....
.....
.....
.....

2. Complainant against: Name ..... Works No: .....

Job title ..... Department.....

3. Hearing Committee's assessment of the case, including mitigating factors. .
.....
.....
.....
Hearing Committee's Verdict .....

4. Signed by:

4.1 Employee Disciplined .....

4.2 Workers' Representatives .....

4.3 Management Representatives: .....

4.4 Human Resources Official:.....
(*Position*)

4.5 Presiding Officer's Signature:.....
(*Position*)

Date:..... Place:.....

NEC FERRO ALLOY INDUSTRY IN ZIMBABWE

ANNEXURE 'FORM No.. 5'

CODE OF CONDUCT: RIGHT TO APPEAL NOTIFICATION FORM

I…….. (Name Of Appellant) having been duly advised of my right of appeal within five (5 working days from the date of conclusion of this hearing which was on …….. (Date of Code of Conduct Action given).

I have further been informed that I must state the grounds of my appeal, to be given in writing, within five (5 working days appeal period. Out of time appeals will not normally be considered unless reasonable grounds are given.

I fully understand these rights as explained to me by the Disciplinary Hearing Committee.

SIGNED: ..... Date: .....

WITNESS: ..... (Worker Representative)

WITNESS: ..... (Management Representative)

SIGNED: ..... (Human Resources Official)

SIGNED: ..... (Presiding/Appeals Officer)

NEC FERRO ALLOY INDUSTRY IN ZIMBABWE

ANNEXURE 'FORM No. 5A'

CODE OF CONDUCT: COMPANY APPEAL DETERMINATION FORM

Name of Company .....

Company Address ....

..... Telephone No.: .....

1. Name of Appellant..... Job Title: ..... W/No: .....

   Department ..... Section .....

   Grounds of Appeal: (***To be stated on a separate sheet and attached***)

2. Initial Hearing Determination: .....

   Period of Validity:.....

   Nature of Offence Alleged:.....

3. Appeals Committee's Findings.....

   .....

   .....

   .....

   Determination: .....

   Period of Validity:.....

   Signature of Alleged offender: .....

   Workers' Representative's Signature:……

Management's Representative's Signature:..……..……..……

Human Resources Official:……..……

(*Position*)

Appeals Officer's Signature:……

(*Position*)

Date: ..... Place:.....

NEC FERRO ALLOY INDUSTRY IN ZIMBABWE

ANNEXURE 'FORM N0. 5'

INITIAL DISCIPLINARY/APPEAL/GRIEVANCE HEARING ADJOURNMENT FORM

The parties hereby agree to adjourn this Disciplinary/Grievance hearing to (Day) ……..… (Date) …….20……. at …… hours.

ALLEGED OFFENDER:…… WORKS NO:……

NATURE OF CASE: DISCIPLINARY CASE/GRIEVANCE CASE

DETAILS: .....
.....
.....
.....

DATE RECEIVED: .....

REASON (S) FOR ADJOURNMENT: .....
.....
.....

ALLEGED OFFENDER: ..... DATE: .....

WORKER REP: ..... DATE: .....

WORKER REP: ..... DATE: .....

COMPLAINANT: ..... DATE: .....

HR OFFICIAL: ..... DATE: .....

PRESIDING/APPEALS OFFICER: ..... DATE: .....

NEC FERRO ALLOY INDUSTRY IN ZIMBABWE

STAGE 1

ANNEXURE "A"

GRIEVANCE PROCEDURE FORM

DATE OF SUBMISSION: .....
.....

NATURE OF GRIEVANCE: .....
.....
.....

COMMENTS BY SUPERVISOR: .....
.....

COMMENTS BY WORKERS' REPRESENTATIVES: .....
.....
.....
.....

NAME & SIGNATURE OF SUPERVISOR .....

NAME & SIGNATURE OF AGGRIEVED: .....

NAMES & SIGNATURE OF W/REPS: .....
.....
.....

SIGNATURE OF HR OFFICIAL:..... DATE: .....

AGGRIEVED PERSON ADVISED OF RIGHT TO APPEAL WITHIN 3 (THREE) WORKING DAYS

SIGNED:..... Date: .....

CASE CLOSED/APPEALED

ALLEGED OFFENDER SIGNED:..... DATE: .....

COPIES: ORIGINAL - HEAD OF DEPARTMENT

FIRST COPY - AGGRIEVED PERSON

SECOND COPY - HUMAN RESOURCES OFFICIAL

THIRD COPY – SUPERVISOR

NEC FERRO ALLOY INDUSTRY IN ZIMBABWE

STAGE 2

ANNEXURE "B"

GRIEVANCE PROCEDURE FORM

DATE OF SUBMISSION:.....
.....

REASON FOR DISSATISFACTION OF DECISION MADE AT STAGE 1:..
.....

FINDINGS & DECISION OF SECTION HEAD:.....
.....

NAME & SIGNATURE OF SUPERVISOR .....

NAME & SIGNATURE OF AGGRIEVED: .....

NAMES & SIGNATURE OF W/REPS:.....
.....
.....

SIGNATURE OF HR OFFICIAL:..... DATE:.....

AGGRIEVED PERSON ADVISED OF RIGHT TO APPEAL WITHIN 3 (THREE) WORKING DAYS

SIGNED: ..... DATE: .....

CASE CLOSED/APPEALED

ALLEGED OFFENDER SIGNED: ..... DATE: .....

COPIES: ORIGINAL—HEAD OF DEPARTMENT

FIRST COPY—AGGRIEVED PERSON

SECOND COPY—HUMAN RESOURCES OFFICIAL

THIRD COPY—SUPERVISOR

FOURTH COPY—HEAD OF SECTION

NEC FERRO ALLOY INDUSTRY IN ZIMBABWE

STAGE 3

ANNEXURE "C"

GRIEVANCE PROCEDURE FORM

DATE OF SUBMISSION:……

REASON FOR DISSATISFACTION OF DECISION MADE AT STAGE 2: ...
.....

FINDINGS AND DECISION OF DEPARTMENT HEAD: .....
.....

NAME AND SIGNATURE OF HOD:……

NAME AND SIGNATURE OF AGGRIEVED:……

NAMES AND SIGNATURE OF W/REPS:……
.....

SIGNATURE OF HR OFFICIAL:…… DATE:……

AGGRIEVED PERSON ADVISED OF RIGHT TO APPEAL WITHIN 3 (THREE) WORKING DAYS

SIGNED: _____ DATE: _____

CASE CLOSED/APPEALED

ALLEGED OFFENDER SIGNED: _____ DATE: _____

COPIES: ORIGINAL—HEAD OF DEPARTMENT

FIRST COPY—AGGRIEVED PERSON

SECOND COPY—HUMAN RESOURCES OFFICIAL

THIRD COPY—SUPERVISOR

FOURTH COPY—HEAD OF SECTION

NEC FERRO ALLOY INDUSTRY IN ZIMBABWE

STAGE 4

ANNEXURE "D"

GRIEVANCE APPEAL FORM

DATE OF SUBMISSION:……

REASON FOR DISSATISFACTION OF DECISION MADE AT STAGE 3:...
.....
.....

FINDINGS AND DECISION OF GENERAL MANAGER:……
……

NAME AND SIGNATURE OF GENERAL MANAGER: .....
.....

NAME AND SIGNATURE OF AGGRIEVED: .....

NAMES AND SIGNATURE OF W/REPS:……
.....
.....

SIGNATURE OF HR OFFICIAL:..... DATE:.....

AGGRIEVED PERSON ADVISED OF RIGHT TO APPEAL WITHIN 3 (THREE) WORKING DAYS

SIGNED: _____ DATE: _____

CASE CLOSED/APPEALED

ALLEGED OFFENDER SIGNED: _____ DATE: _____

COPIES: ORIGINAL—HEAD OF DEPARTMENT

FIRST COPY—AGGRIEVED PERSON

SECOND COPY—HUMAN RESOURCES OFFICIAL

THIRD COPY—SUPERVISOR

FOURTH COPY—HEAD OF SECTION

NEC FERRO ALLOY INDUSTRY IN ZIMBABWE

FORMAL GRIEVANCE STATEMENT FORM

ANNEXURE "E"

STATEMENT BY: ..... WORKS No: .....

JOB TITLE.....

GRIEVANCE STATEMENT:

.....

.....

.....

.....

.....

SIGNED:..... DATE: .....

10.0 Amendment of the Code

This Code of Conduct may be amended by the National Employment Council for the Ferro Alloy Industry in Zimbabwe from time to time to address changed circumstances, or emerging acts of misconduct.

11.0 Memorandum of Agreement

The National Employment Council for the Ferro Alloy Industry in Zimbabwe Employment Code of Conduct has been adopted under the authority of the National Employment Council for Ferro Alloy Industry in Zimbabwe in terms of section 101 of the Labour Act, [*Chapter 28:01*].

FIFTH SCHEDULE:

AGREED DURATION OF FIXED TERM CONTRACT

Statutory Instrument 88 of 2017.

[CAP. 28:01

Collective Bargaining Agreement: Ferro-Alloy Industry

It is hereby notified that in terms of section 80 of the Labour Act [*Chapter 28:01*], the Minister of Public Service, Labour, and Social Welfare has approved the publication of the Collective Bargaining Agreement set out in the Schedule which further amends the agreement published in Statutory Instrument 76 of 2017, registered in terms of 79 of Labour Act [*Chapter 28:01*].

SCHEDULE

NATIONAL EMPLOYMENT COUNCIL FOR THE FERRO-ALLOY INDUSTRY IN ZIMBABWE

COLLECTIVE BARGAINING AGREEMENT: FERRO-ALLOY INDUSTRY IN ZIMBABWE

Made and entered into in accordance with the provisions of the Labour Act [*Chapter 28:01*] (hereinafter referred to as "the Act") as amended, between the Ferro-Alloy Industry Employers' Association (herein referred to as "the employers" or "employers organisation") of the one part, and the National Union of Metal and Allied Industries in Zimbabwe (hereinafter referred to as "the employees" or "the trade union"), of the other part, being parties to the National Employment Council for the Ferro-Alloy Industry in Zimbabwe.

The Collective Bargaining Agreement for the Ferro-Alloy Industry in Zimbabwe, published in Statutory Instrument 76 of 2017, is amended by parties as follows—

Amendment of Section 3

Section 3 *(Interpretation)* of Collective Bargaining Agreement, for the Ferro-Alloy Industry in Zimbabwe (Statutory 1ntrument 76 of 2017) herein after referred to as the Principal Collective Bargaining Agreement, to be amended by insertion of these clauses:

Child-means any young person who has not yet attained the legal age of majority being eighteen (18) years.

Child Labour- refers to work that deprives young persons of their childhood and dignity, compromises their educational development or forces the children to drop out of school prematurely, or requires them to combine school attendance with excessively long and heavy workloads that is in violation of the country's minimum age regulations, and the work being mentally, physically, socially, or morally dangerous and harmful to the well-being of the children.

Worst Forms of Child Labour -means extreme forms of child labour which involves child slavery, exposure to serious hazards and illnesses and or leaving children to fend for themselves on the streets at a very tender age.

Hazardous work- Any type of employment or work which by its nature or the circumstances in which it is carried out is likely to jeopardise education, health, safety, or morals.

Light work-work, which is not likely to jeopardise the education, health, safety, rest or the social, physical or mental development of a child.

Amendment of Section 22

Section 22 (*Contract and Notice*) of the Principal Act is to be amended by the insertion of subsection (j) on EMPLOYMENT OF YOUNG PERSONS as follows:

(1) No employer shall employ any person in any position who is under the age of sixteen (16) years.

(a) as an apprentice;

(b) other than an apprentice to perform any work in an undertaking.

(2) No employer shall employ any person below the age of eighteen (18).

(a) to perform hazardous work;

(b) to perform work in an undertaking other than as an apprentice or in conjunction with training at a vocational or technical training school.

(3) No Employer shall cause any person under the age of eighteen (18) to perform the following work:—

(a) any work which is likely to jeopardise or interfere with the education of the child or young person;

(b) any work involving contact with any hazardous substance, article or process;

(c) any work involving underground/surface mining;

(d) any work that exposes a child to electrically powered tools, fuel powered tools cutting or grinding blades;

(e) any work that exposes a child to excess heat, cold, noise or whole-body vibration;

(f) any night shifts.

(4) The following activities shall be regarded as child labour and no Employer shall engage or cause a child to perform any of the activities tabulated in Table 1:

List of hazardous work in the Ferro-Alloy Industry

HAZARD	**RISK**
Confined spaces in the plant	Injuries
Moving trucks and machinery	Accidents
Manual offloading of overweighed trucks or loaders on the weighbridge	Injuries
Oil spills from trucks and loaders	Slides, slips, falls, ignition and fire
Acid fumes	Lung inflammation
Heat and Cold	Colds and fever
Water ponds	Drowning
Snakes	Snake bites
Material falling from trucks and conveyer belts	Injuries
Noise; During tipping and loading of raw materials and during crushing	Hearing loss
Furnace eruptions	Fatalities and burns
Dust	Respiratory diseases for instance pneumoconiosis
Working at heights	Falling

FERRO ALLOY INDUSTRY

MANDATORY MINIMUM PERSONAL PROTECTIVE EQUIPMENT (PPE) REQUIREMENTS

OBJECTIVE

To prevent occupational injuries through mandatory provision of PPE to employees by all players in the Ferro Alloy industry.

No	Job Title	Hard hat	Safety goggles/ glasses	Work suits/ overalls	Safety shoes/ boots	Dust mask/	chemical respirator	Ear plug/ muffs	Leather spats	Leather apron	Welding helmet	Monkey hood	Leather gloves	PVC gloves	Gum boots	Rain suit	Canvas jacket	Face shield	Shin guards
	Anniversary	3yrs	3 mths	9mths	9mths	As per request	1yr	As per request	6mths	1 yr	2 yrs	6 mths	As per request	As per request	1yrs	1yrs	9 mths	1yr	1yr
1.0	RAW MATERIALS																		
1.1	Loco driver Pointsman	1	1	2	1	4		1								1			
1.2	Offloaders	1	1	2	1	4		1					1			1			
1.3	Batch operator	1	1	2	1	4		1					1	1	1	1			
2.0	ABOVE TAPHOLE																		
2.1	Fce Control Room operator	1	1	2	1	4		1					1			1		1	
2.2	Overhead Crane driver	1	1	2	1	4		1								1			
2.3	Bin attendant	1	1	2	1	4		1	1			1	1			1	1		

No	Job Title	Hard hat	Safety goggles/ glasses	Work suits/ overalls	Safety shoes/ boots	Dust mask/	chemical respirator	Ear plug/ muffs	Leather spats	Leather apron	Welding helmet	Monkey hood	Leather gloves	PVC gloves	Gum boots	Rain suit	Canvas jacket	Face shield	Shin guards
	Anniversary	3yrs	3 mths	9mths	9mths	As per request	1yr	As per request	6mths	1 yr	2 yrs	6 mths	As per request	As per request	1yrs	1yrs	9 mths	1yr	1yr
2.4	C/Car driver Furnace charger	1	1	2	1	4		1				1	1			1	1		
2.5	Paste Handler	1	1	2	1	4		1					1		1	1			
3.0	BELOW TAPHOLE																		
3.1	Tapper	1	1	2	1	4		1	1			1	1			1	1	1	
3.2	Slinger	1	1	2	1	4		1	1			1	1			1		1	
3.3	Chillmould Preparer	1	1	2	1	4		1	1			1	1		1	1			
3.4	Mudgun preparer	1	1	2	1	4		1	1			1	1		1	1			
3.5	Quench man	1	1	2	1	4		1				1	1	1	1	1			
3.6	Ladle fettler	1	1	2	1	4		1	1	1			1		1	1			
3.7	Fces cleaner	1	1	2	1	4		1	1				1		1	1		1	
4.0	CRUSHING AND SCREENING																		
4.1	QA Inspector	1	1	2	1	4		1							1	1			
4.2	Stock Cont	1	1	2	1	4		1							1	1			
4.3	Screen att	1	1	2	1	4		1						1	2	1			
4.4	Crusher attendant	1	1	2	1	4		1					1		2	1			

No	Job Title	Hard hat	Safety goggles/ glasses	Work suits/ overalls	Safety shoes/ boots	Dust mask/	chemical respirator	Ear plug/ muffs	Leather spats	Leather apron	Welding helmet	Monkey hood	Leather gloves	PVC gloves	Gum boots	Rain suit	Canvas jacket	Face shield	Shin guards
	Anniversary	3yrs	3 mths	9mths	9mths	As per request	1yr	As per request	6mths	1 yr	2 yrs	6 mths	As per request	As per request	1yrs	1yrs	9 mths	1yr	1yr
4.5	Crusher attendant	1	1	2	1	4		1					1		2	1			
4.6	Ball mill att	1	1	2	1	4		1					1		2	1			
5.0	JIGGING AND SLIMES																		
5.1	Slimes dam att	1	1	2	1	4		1							3	1			
5.2	Jig Attendant	1	1	2	1	4		1				1	1	1	3	1			
6.0	LABORATORY																		
6.1	Lab Personnel	1	1	2	1	4	1	1								1			
7.0	BREAKING FLOORS																		
7.1	Ingot breakers	1	1	2	1	4		1								1			
7.2	Slinger	1	1	2	1	4		1	1			1	1			1		1	
7.3	Overhead Crane driver	1	1	2	1	4		1								1			
7.4	Breaker Driver/ Bin Att	1	1	2	1	4		1	1			1	1			1	1		
8.0	MAINTENANCE																		
8.1	Fitter	1	1	2	1	4		1					1		1	1			

No	Job Title	Hard hat	Safety goggles/ glasses	Work suits/ overalls	Safety shoes/ boots	Dust mask/	chemical respirator	Ear plug/ muffs	Leather spats	Leather apron	Welding helmet	Monkey hood	Leather gloves	PVC gloves	Gum boots	Rain suit	Canvas jacket	Face shield	Shin guards
	Anniversary	3yrs	3 mths	9mths	9mths	As per request	1yr	As per request	6mths	1 yr	2 yrs	6 mths	As per request	As per request	1yrs	1yrs	9 mths	1yr	1yr
8.2	Boiler Maker	1	1	2	1	4		1		1	1		1		1	1			
8.3	Electrician Technician	1	1	2	1	4		1					1		1	1			
8.4	Rigger	1	1	2	1	4		1					1		1	1			
8.5	Garage	1	1	2	1	4									1	1			
8.6	Bricklayer / Plumber	1	1	2	1	4		1						1	1	1			
9.0	ADMINISTRATION WORKERS																		
9.1	Stores clerk	1	1	2	1	4		1								1			
9.2	Security	1	1	2	1	4		1								1			
9.3	Production clerk	1	1	2	1	4		1								1			
9.4	Messengers	1	1	2	1	4		1								1			
9.5	General Hands	1	1	2	1	4		1								1			

- Dust mask should be changed as and when it is necessary up to a maximum of three working days.
- Hard hat inserts should be changed as and when it is necessary.
- Employees who need to visit the plant for the purpose of executing their duties should be provided with appropriate PPE.e.g HR personnel conducting investigations.
- Companies currently on best practise are encouraged to maintain those standards.
- PPE which have been torn due to wear and tear should be replaced immediately. No employee shall be permitted to work with torn PPE.
- Work places which require specialised PPE should be provided with such e.g laboratory – acid resistant PPE, heat resistant PPE, Oil resistant PPE and purpose made PPE.
- A PPE Register must be made available whenever it is requested.
- Visitors must be provided with the basic PPE such as hard hat, work suit, dust mask and goggles whenever they are entering the plant.
- Every enterprise must constitute a SHE Committee that will handle occupational safety issues for the organisation.

Eighth Schedule

SHIFT ROSTER AND HOURS OF WORK

1	8: 8: 8 shift						
	A	B	C	D			
Jul - 24	176	184	192	192			
Aug- 24	192	184	176	192			
Sep- 24	184	184	176	176			
Oct - 24	176	192	192	184			
Nov- 24	184	168	184	184			
Dec- 24	192	184	176	192			
Jan- 25	184	192	192	176			
Feb- 25	168	168	168	168			
Mar - 25	176	184	192	192			
Apr - 25	184	176	176	184			
May- 25	192	192	184	176			
Jun- 25	176	184	184	176			
						Total hours	Check hours
	2184	2192	2192	2192		8760	8760
	182. 00	182. 67	182. 67	182. 67			
2	12 hour shifts						
	4 days on - 4 days off						
Jul - 24	192	180	180	180			
Aug- 24	192	192	180	180			
Sep- 24	168	168	192	192			
Oct - 24	180	180	192	192			
Nov- 24	180	180	180	180			
Dec- 24	192	192	180	180			
Jan- 25	192	192	180	180			
Feb- 25	156	156	180	180			
Mar - 25	180	180	192	192			
Apr - 25	192	192	168	168			
May- 25	192	192	180	180			
Jun- 25	180	180	180	180			
						Total hours	
	2196	2184	2184	2196		8760	
	183. 00	182. 00	182. 00	183. 00			

Annexure A

NATIONAL EMPLOYMENT COUNCIL FOR THE FERRO ALLOY INDUSTRY IN ZIMBABWE

APPLICATION FOR EXEMPTION FORM

NAME OF APPLICANT .....

DATE OF APPLICATION FOR EXEMPTION .....

TOTAL NUMBER OF NEC EMPLOYEES/ EMPLOYERS .....

SECTION OF THE CBA TO BE EXEMPETED FROM .....

REASON FOR APPLICATION OF EXEMPTION (ATTACH PROOF) .....
.....
.....
.....
.....
.....

NAME OF THE APPLICANT .....

SIGNATURE .....

DATE .....

Annexure B

NATIONAL EMPLOYMENT COUNCIL FOR THE FERRO ALLOY INDUSTRY IN ZIMBABWE

CERTIFICATE EXEMPTION FORM

NAME OF COMPANY .....

DATE OF APPLICATION FOR EXEMPTION .....

TOTAL NUMBER OF NEC EMPLOYEES .....

SECTION OF THE CBA TO BE EXEMPTED FROM .....

EXEMPTION GRANTED/NOT GRANTED .....

PERIOD OF EXEMPTION FROM……...TO……

COMMENTS .....
.....
.....
.....
.....
.....

EXEMPTION COMMITTEE NAMES AND SIGNATURES

NAME	SIGNATURE	DATE
.....	.....	.....
.....	.....	.....
.....	.....	.....

DECLARATION

The Employers' Association and the Trade Union, having arrived at the agreement set forth herein, the undersigned hereby declare that the foregoing is the consolidated agreement arrived at and affix their signatures thereto.

Signed at Kwekwe this.....day of....., 2025.

Name	Signature	Position
G. Shambare	.....	NEC Chairman
M. Dzinoreva	.....	Employers Representative
A. Nyashanu	.....	Trade Union Representative
P. Chachoka	.....	NEC General Secretary